

NEW OR TRANSFER LIQUOR LICENSE OR PERMIT APPLICATION

FOR LIQUOR DIVISION USE ONLY		
Customer #:		
Trf from:		
Reviewer:	Initials	Date
Agent:		/ /
Chief:		/ /

To be completed by City/County Clerk		Local License #: 46
License Fees	Annual Fee: \$	Date filed with clerk: 02 / 09 / 2022
	Prorated Fee: \$	Advertising Dates: (2 Weeks)
	Transfer Fee: \$100.00	February 17 & February 24, 2022
	Publishing Fee: \$100.00	Hearing Date: 02 / 28 / 2022
Publishing Fee Direct Billed to Applicant: ☐		
License Term:	04 / 01 / 2022 Through 03 / 31 / 2023	
	Month Day Year	Month Day Year
LICENSING AUTHORITY: Begin publishing promptly. As W.S. 12-4-104(d) specifies: NO LICENSING AUTHORITY SHALL APPROVE OR DENY THE APPLICATION UNTIL THE LIQUOR DIVISION HAS CERTIFIED THE APPLICATION IS COMPLETE.		
Applicant: <u>Dillon Companies, LLC, a Kansas limited liability company</u>		
Trade/Business Name (dba): <u>King Soopers</u>		
Building to be licensed/Building Address: <u>3702 Dell Range Boulevard</u>		
	Number & Street	
	<u>Cheyenne</u>	<u>WY</u> <u>82009</u> <u>Laramie</u>
	City	State Zip County
Local Mailing Address:	<u>65 Teion Street</u>	
	Number & Street or P.O. Box	
	<u>Denver</u>	<u>CO</u> <u>80223</u>
	City	State Zip
Local Business Telephone Number: <u>(303) 778-3100</u> Fax Number: <u>()</u>		
Business E-Mail Address: <u>teresa.dietz@kingsoopers.com</u>		
FILING FOR	FILING IN (CHOOSE ONLY ONE)	FILING AS (CHOOSE ONLY ONE)
☐ NEW LICENSE	☒ CITY OF: <u>Cheyenne</u>	☐ INDIVIDUAL
☒ TRANSFER OF LOCATION	☐ COUNTY OF: _____	☐ PARTNERSHIP
		☐ LP/LLP
		☒ LLC
☒ TRANSFER OWNERSHIP	☒ ASSIGNMENT LETTER ATTACHED	☐ CORPORATION
FORMERLY HELD BY: <u>Avanti, Inc., a Wyoming corporation, d/b/a Dell Range Liquor</u>		☐ LTD PARTNERSHIP
		☐ ORGANIZATION
		☐ OTHER _____
TYPE OF LICENSE OR PERMIT (CHOOSE ONLY ONE)		
RETAIL LIQUOR LICENSE	☐ RESTAURANT LIQUOR LICENSE	☐ MICROBREWERY
☐ ON-PREMISE ONLY (BAR)	☐ RESORT LIQUOR LICENSE	☐ WINERY
☒ OFF-PREMISE ONLY (PACKAGE STORE)	☐ BAR AND GRILL	☐ DISTILLERY SATELLITE
☐ COMBINATION ON/OFF PREMISE (BOTH BAR & PACKAGE STORE)	LIMITED RETAIL (CLUB)	☐ WINERY SATELLITE
	☐ VETERANS CLUB	☐ COUNTY RETAIL/SPECIAL MALT BEVERAGE PERMIT
	☐ FRATERNAL CLUB	
	☐ GOLF CLUB	
	☐ SOCIAL CLUB	
SPECIAL DESIGNATIONS		
☐ CONVENTION FACILITY	☐ GOLF CLUB	☐ RESORT
☐ CIVIC CENTER/EVENT CENTER/ PUBLIC AUDITORIUM	☐ GUEST RANCH	
To Assist the Liquor Division with scheduling inspections: OPERATIONAL STATUS		
☒ FULL TIME (e.g. Jan through Dec)	(specify months of operation)	from _____ to _____
☐ SEASONAL/PART-TIME	DAYS OF WEEK (e.g. Mon through Sat)	from <u>Mon</u> to <u>Sun</u>
☐ NON-OPERATIONAL/PARKED	HOURS OF OPERATION (e.g. 10a - 2a)	from <u>8 AM</u> to <u>10 PM</u>

ALL APPLICANTS MUST COMPLETE QUESTIONS 1- 4

1. **BUILDING OWNERSHIP:** Does the applicant? W.S. 12-4-103(a)(iii)
(a) **OWN** the licensed building? ☐ YES (own)
(b) **LEASE** the licensed building? (Lease must be through the term of the liquor license) ☒ YES (lease)
If Yes, please submit a copy of the lease and indicate:
(i) When the lease expires, located on page 1 paragraph 2 of lease.
(ii) Where the **Sales** provision for alcoholic or malt beverages is located, on page 5 paragraph 2 of lease.
(MUST contain a provision for SALE OF ALCOHOLIC or MALT BEVERAGES.)
2. To operate your liquor business, have you assigned, leased, transferred or contracted with any other person (entity) to operate and assert total or partial control of the license and the licensed building? W.S. 12-4-601(b) ☐ YES ☒ NO
3. Does any manufacturer, brewer, rectifier, wholesaler, or through a subsidiary affiliate, officer, director or member of any such firm: W.S. 12-5-401, 12-5-402, 12-5-403
(a) Hold any interest in the license applied for? ☐ YES ☒ NO
(b) Furnish by way of loan or any other money or financial assistance for purposes hereof in your business? ☐ YES ☒ NO
(c) Furnish, give, rent or loan any equipment, fixtures, interior decorations or signs other than standard brewery or manufacturer's signs? ☐ YES ☒ NO
(d) If you answered **YES** to any of the above, explain fully and submit any documents in connection there within:

4. Does the applicant have any interest or intent to acquire an interest in any other liquor license issued by this licensing authority? W.S. 12-4-103(b) ☐ YES ☒ NO
If "YES", explain: _____

5. **BAR AND GRILL LICENSE OR RESTAURANT LICENSE:**
Have you submitted a valid food service permit or application? W.S. 12-4-413(a) ☐ YES ☐ NO

6. **RESORT LICENSE:**
Does the resort complex:
(a) Have an actual valuation of at least one million dollars, or have you committed or expended at least one million dollars (\$1,000,000.00) on the complex, excluding the value of the land? W.S. 12-4-401(b)(i) ☐ YES ☐ NO
(b) Include a restaurant and a convention facility which will seat at least one hundred (100) persons? W.S. 12-4-401(b)(ii) ☐ YES ☐ NO
(c) Include motel, hotel or privately owned condominium, town house or home accommodations approved for short term occupancy with at least one hundred (100) sleeping rooms? W.S. 12-4-401(b)(iii) ☐ YES ☐ NO
(d) If no on question (c), have a ski resort facility open to the general public in which you have committed or expended not less than 10 million dollars (\$10,000,000.00)? W.S. 12-4-401(b)(iv) ☐ YES ☐ NO
(e) Are you contracting/leasing the food and beverage services? W.S. 12-4-403(b)
1. If Yes, have you submitted a copy of the food and beverage contract/lease? ☐ YES ☐ NO

7. **MICROBREWERY LICENSE:**
Will the license be held in conjunction with another liquor license? W.S. 12-4-412(b)(iii) ☐ YES ☐ NO
(a) If "YES", please specify type: ☐ RETAIL ☐ RESTAURANT ☐ RESORT
☐ BAR AND GRILL ☐ WINERY
(b) Do you self distribute your products? W.S. 12-2-201(a) ☐ YES ☐ NO
(Requires wholesale malt beverage license with the Liquor Division)

8. **WINERY LICENSE:**
Will the license be held in conjunction with another liquor license? W.S. 12-4-412(b)(iii) ☐ YES ☐ NO
(a) If "YES", please specify type: ☐ RETAIL ☐ RESTAURANT ☐ RESORT
☐ BAR AND GRILL ☐ MICROBREWERY

9. LIMITED RETAIL (CLUB) LICENSE:

FRATERNAL CLUBS W.S. 12-1-101(a)(iii)(B)

- (a) Has the fraternal organization been actively operating in at least thirty-six (36) states? ☐ YES ☐ NO
- (b) Has the fraternal organization been actively in existence for at least twenty (20) years? ☐ YES ☐ NO

10. LIMITED RETAIL (CLUB) LICENSE:

VETERANS CLUBS W.S. 12-1-101(a)(iii)(A):

- (a) Does the Veteran’s organization hold a charter by the Congress of the United States? ☐ YES ☐ NO
- (b) Is the membership of the Veteran's organization comprised only of Veterans and its duly organized auxiliary? ☐ YES ☐ NO

11. LIMITED RETAIL (CLUB) LICENSE:

GOLF CLUBS W.S. 12-1-101(a)(iii)(D)/W.S. 12-4-301(e):

- (a) Do you have more than fifty (50) bona fide members? ☐ YES ☐ NO
- (b) Do you own, maintain, or operate a bona fide golf course together with clubhouse? ☐ YES ☐ NO
- (c) Are you a political subdivision of the state that owns, maintains, or operates a golf course? ☐ YES ☐ NO
1. Are you contracting/leasing the food and beverage services? W.S. 12-5-201(g) ☐ YES ☐ NO
2. If Yes, have you submitted a copy of the food and beverage contract/lease? ☐ YES ☐ NO

12. LIMITED RETAIL (CLUB) LICENSE:

SOCIAL CLUBS W.S. 12-1-101(a)(iii)(E)/W.S. 12-4-301(b):

- (a) Do you have more than one hundred (100) bona fide members who are residents of the county in which the club is located? ☐ YES ☐ NO
- (b) Is the club incorporated and operating solely as a nonprofit organization under the laws of this state? ☐ YES ☐ NO
- (c) Is the club qualified as a tax exempt organization under the Internal Revenue Service? ☐ YES ☐ NO
- (d) Has the club been in continuous operation for a period of not less than one (1) year? ☐ YES ☐ NO
- (e) Has the club received twenty-five dollars (\$25.00) from each bona fide member as Recorded by the secretary of the club and are club members at the time of this application in good standing by having paid at least one (1) full year in dues? ☐ YES ☐ NO
- (f) Does the club hold quarterly meetings and have an actively engaged membership carrying out the objectives of the club? ☐ YES ☐ NO
- (g) Have you filed a true copy of your bylaws with this application? ☐ YES ☐ NO
- (h) Has at least fifty one percent (51%) of the membership signed a petition indicating a desire to secure a Limited Retail Liquor License? (Petition Attached) ☐ YES ☐ NO

13. If applicant is filing as an Individual, Partnership or Club: W.S. 12-4-102(a)(ii) & (iii)

Each individual, partner or club officer must complete the box below.

True and Correct Name	Date of Birth	Residence Address No. & Street City, State & Zip <i>DO NOT LIST PO BOXES</i>	Residence Phone Number	Have you been a DOMICILED resident for at least 1 year and not claimed residence in any other state in the last year?	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐

14. If the applicant is a **Corporation, Limited Liability Company, Limited Liability Partnership or Limited Partnership:** W.S. 12-4-102(a)(iv) & (v)

Each stockholder holding, either jointly or severally, ten percent (10%) or more of the outstanding and issued capital stock of the corporation, limited liability company, limited liability partnership, or limited partnership, **and every officer, and every director** must complete the box below.

True and Correct Name	Date of Birth	Residence Address No. & Street City, State & Zip <i>DO NOT LIST PO BOXES</i>	Residence Phone Number	No. of Years in Corp or LLC	% of Corpora te Stock Held	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
See Attached						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐

(If more information is required, list on a separate piece of paper and attach to this application)

REQUIRED ATTACHMENTS:

- ☒A statement indicating the financial condition and financial stability of the applicant W.S. 12-4-102(a)(vi).
- ☒Attach any lease agreements (especially for resort/political subdivisions leasing out food & beverage services) W.S. 12-4-103 (a)(iii)/W.S. 12-4-403(b)/W.S. 12-4-301(e).
- ☒If transferring a license from one ownership to another, a form of assignment from the current licensee to the new applicant authorizing the transfer W.S. 12-4-601(b).

OATH OR VERIFICATION

(Requires signatures by **ALL** Individuals, **ALL** Partners, **ONE (1)** LLC Member, or **TWO (2)** Corporate Officers or Directors except that if all the stock of the corporation is owned by **ONE (1)** individual then that individual may sign and verify the application upon his oath, or **TWO (2)** Club Officers.) W.S. 12-4-102(b)

**Under penalty of perjury, and the possible revocation or cancellation of the license,
I swear the above stated facts, are true and accurate.**

STATE OF WYOMING)
) SS.
COUNTY OF _____)

Signed and sworn to before me on this _____ day of _____, 2021 that the facts alleged in the foregoing instrument are true by the following:

1)	_____	Christine S. Wheatley	VP and Sec
	(Signature)	(Printed Name)	Title
2)	_____	_____	_____
	(Signature)	(Printed Name)	Title
3)	_____	_____	_____
	(Signature)	(Printed Name)	Title
4)	_____	_____	_____
	(Signature)	(Printed Name)	Title
5)	_____	_____	_____
	(Signature)	(Printed Name)	Title
6)	_____	_____	_____
	(Signature)	(Printed Name)	Title

Witness my hand and official seal:

Signature of Notary Public

(2/21)
(SEAL)

My commission expires:_____

Avanti Inc.

D/b/a: Dell Range Liquors

3806 Dell Range Blvd suite b4

Cheyenne Wy 82009

January 27/2022

City of Cheyenne
2102 O'Neil Avenue
Cheyenne, Wyoming 82001

To: The Honorable Mayor Patrick Collins and Members of the City Council

From: Avanti, Inc. (d/b/a Dell Range Liquor Store)

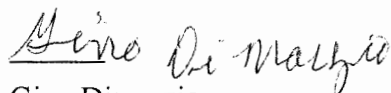
Dear Mayor and City Council Members:

As you know, our roots in Cheyenne go back many decades, and we have enjoyed every moment of that time. However, we are writing to you to let you know that a great opportunity has presented itself for us to sell our current business to King Soopers, our next-door neighbors. Due to personal reasons, we are requesting your support and approval to sell the business to King Soopers, which will be a smooth and seamless transition.

King Soopers has been serving Cheyenne since 2000 and they have been an integral part of our city all these years. We think they will be a great successor in continuing our business. It has been a pleasure serving our community, but after some twenty-six years, we believe now is the time for us to finally retire and enjoy the fruits of our labor. We ask for your support in this decision.

Thank you, and please let us know if we can be of assistance.

Respectfully,



Gino Dimarzio
Owner/Manager



Roberto Mancini
Owner/Manager

1/27/2022
Date: -



February 7, 2022

Mayor and City Council

Re: Application for a transfer of ownership and expansion of location as to Dell Range
Liquors' retail license

Dear Mr. Mayor and City Councilors:

We have enclosed an application for a transfer of retail liquor license number 46 that has been issued to Avanti, Inc. dba Dell Range Liquor. The proposed transfer is to Dillon Companies, LLC, which is the owner/operator of the King Soopers store to the west of Dell Range Liquors. In addition, the application seeks to expand the liquor license area from the approximately 5,600 sqft site that currently exists to an approximately 7,278 sqft site.

As is required under Cheyenne's zoning code, any expansion of a liquor license conditional use permit requires approval of the Cheyenne Board of Adjustment. On December 16, 2021, the Board of Adjustment approved the conditional use permit expansion of the liquor store here. A site plan shows the boundaries of the liquor store and liquor storage area.

Thus, we apply for the Mayor and Council's consideration of a transfer of ownership and approval of the expanded store area. We believe that Dillon Companies, LLC will be a suitable successor to Mr. Dimarzio and Mr. Mancini who have operated this liquor license since 2000 as Avanti, Inc. King Soopers has been a fixture in this neighborhood for many years, and we greatly enjoy being a part of the Cheyenne community.

The transaction between Avanti, Inc. and Dillon Companies, LLC is contingent on the City approving the liquor license transfer. Upon an approval of the transfer, the parties can quickly close. We respectfully request that any approval be conditioned on the closing of the transaction between Avanti, Inc. and Dillon Companies, LLC.

We look forward to speaking to you in your consideration of this proposed transfer, and appreciate the time you invest into consideration of items like this.

Very truly yours,

DocuSigned by:

72809DB4D8C9437...

Teresa Dietz

LEASE WITH AMENDMENTS (REDACTED) (SECTION
SEE ATTACHED

AS TO THE PREMISES FOR LIQUOR SALES AND THE
AUTHORIZATION TO CONDUCT LIQUOR SALES, PLEASE
SEE THE FOURTH AMENDMENT TO THE LEASE (PAGES
ONE AND TWO)

LEASE AGREEMENT

between

**R&KS DELL RANGE DEVELOPMENT, LLC,
a Wyoming limited liability company**

"LANDLORD"

and

**DILLON COMPANIES, INC.,
d/b/a KING SOOPERS, a Kansas corporation**

"TENANT"

Dated: December 1, 2000

THE LANDLORD, INCLUDING, BUT NOT LIMITED TO, ITS HEIRS, SUCCESSORS, ASSIGNS AND LEGAL REPRESENTATIVES, AGREES THAT THIS LEASE MAY NOT BE RECORDED AND THAT LANDLORD HEREBY AGREES TO USE BEST EFFORTS TO PRESERVE THE CONFIDENTIALITY OF THIS TRANSACTION. THIS CONFIDENTIALITY AGREEMENT EXTENDS TO ANY DEVELOPERS, BANKERS, LAWYERS, ACCOUNTANTS, EMPLOYEES, AGENTS OR ANY OTHER PERSONS ACTING ON BEHALF OF THE LANDLORD. THE LANDLORD AGREES TO USE BEST EFFORTS TO AVOID DISCUSSING WITH, OR DISCLOSING TO, ANY THIRD PARTIES (EXCEPT THOSE PARTIES LISTED ABOVE AND THOSE WITH A NEED TO KNOW) ANY OF THE TERMS, CONDITIONS OR PARTICULARS IN CONNECTION WITH THIS TRANSACTION. IT IS SPECIFICALLY AGREED BY WAY OF ILLUSTRATION, BUT NOT BY LIMITATION, THAT THE COVENANT OF CONFIDENTIALITY SET FORTH HEREIN SHALL NOT BE BREACHED IF SUCH INFORMATION IS DISCLOSED IN CONNECTION WITH OR DUE TO ANY GOVERNMENTAL LAW OR ORDINANCE, BUT THIS COVENANT OF CONFIDENTIALITY SHALL BE BREACHED IF LANDLORD, OR ANY OF LANDLORD'S DEVELOPERS, BANKERS, ACCOUNTANTS, AGENTS, LENDERS, LAWYERS OR OTHER SIMILAR PARTIES, DISCLOSES THE CONTENT OF, OR DELIVERS A COPY OF THIS LEASE TO, ANY THIRD PARTY WITHOUT FIRST INFORMING PERMITTED RECIPIENT OF THE CONFIDENTIAL NATURE OF THIS LEASE.

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DEFINITIONS

Store	-	Article I
Center	-	Article I (Exhibit A)
Site Plan	-	Article I (Exhibit B)
Premises	-	Article I, Paragraph 1
Common Areas	-	Article II, Paragraph 3
Proportionate Share	-	Article XII, Paragraph 1
Kings Tax Lot	-	Article XX, Paragraph 4

EXHIBIT LIST

- "A" - Legal Description of Center
- "B" - Site Plan
- "C" - Declaration of Reciprocal Easements and Restrictions
- "D" - Agreement for Operation and Maintenance for Common Areas for Dell Range Marketplace
- "E" - Permitted Exceptions
- "F" - Subordination, Non-Disturbance and Attornment Agreement
- "G" - Estoppel Certificate Form

I. PARTIES AND RECITALS

THIS INDENTURE, made and entered into this 1st day of December, 2000, by and between R&KS DELL RANGE DEVELOPMENT, LLC, a Wyoming limited liability company (hereinafter referred to as Landlord) and DILLON COMPANIES, INC., d/b/a KING SOOPERS, a Kansas corporation, P. O. Box 5567, Denver, Colorado 80217 (hereinafter referred to as Tenant).

WITNESSETH:

WHEREAS, Landlord desires to construct a new store (the Store) on the property owned by Landlord, legally described in Exhibit "A", attached hereto and incorporated herein by this reference (the Center), which new store shall be located in the space designated as "King Soopers" on the "Site Plan" attached hereto and incorporated herein by this reference marked Exhibit "B"; and

WHEREAS, the parties desire to fully state the terms, conditions and the obligations of the respective parties in the event of construction of the Store;

NOW, THEREFORE, it is hereby mutually agreed between the parties that this Lease Agreement shall govern the rights, duties and obligations of the parties concerning the Store.

II. PREMISES

1. In consideration of the payment of rent and additional rent hereinafter provided and the keeping and performance of each of the covenants and agreements of the said Lease, Landlord does hereby lease unto said Tenant the following described premises (the Premises) to be located at Ridge Road and Dell Range Boulevard, Cheyenne, Wyoming, to wit:

The to-be built store building (the Building) consisting of approximately 61,887 square feet of ground floor building area located in the space designated as "King Soopers" on the Site Plan

2. Underground conduit and facilities for water, sewer, electrical, gas, telephone, cable and other utility services to the to-be constructed and completed Premises, are non-exclusive appurtenances to this leasehold interest.

3. The non-exclusive right of Tenant, its employees, customers, contractors, and invitees to use the Center entrances, driveways, parking areas and the other Common Areas is an appurtenance to the leasehold interest. The term "Common Areas" when used in this Lease means all of the Center except (i) the Premises, (ii) other building areas including the exterior walls and structural components of those areas, the roof over those areas and canopies attached to those areas (including the canopy roof), (iii) outdoor dining areas and (iv) drive-up or drive-through access areas and improvements used for that purpose. The term includes, but is not

limited to entrances, exits, driveways, parking areas, delivery areas, outside docks, landscape areas and sidewalks.

III. RESTRICTIVE COVENANTS AND EASEMENTS

Landlord covenants and agrees as follows:

1. That portions of the Common Area utilized for the purpose of ingress and egress to the Premises; for the purposes of parking on Lots 4, 5 and 6; or for the purposes of ingress or egress to the other structures on the Center; either at the present or at any future time, shown on the Site Plan for the Center attached hereto as Exhibit "B", shall be subject to a non-exclusive irrevocable easement during the term of this Lease and its extensions for ingress and egress in common with other Center occupants or tenants for Tenant's use and the use of Tenant's invitees and customers for parking and access purposes, as an appurtenance to this Lease.

2. During the term of this Lease and any extensions, Landlord shall not, without the prior written consent of Tenant, alter, change, modify or permit any other person or party under its control to alter, change or modify in any respect any building envelope, traffic lanes, lanes for ingress and egress, entrances, exits, walks, parking areas, set backs, or Common Areas in Lots 4, 5 and 6 of the Center. The Landlord shall not expand the Center onto adjoining land whereby additional tenants would utilize the Common Areas of the Center without the prior written consent of Tenant.

3. Except as specifically provided for in this paragraph, Tenant shall have the exclusive right to the use of the Center for a cigarette store or smoke shop, a drug store or a pharmacy requiring the services of a registered pharmacist, provided that this restriction shall cease to be in force and effect if the occupant of the Premises fails to sell tobacco products, operate a drug store, or a pharmacy department, for a period of three hundred sixty-five (365) consecutive days or longer subsequent to the opening for business of the Premises except when such failure is caused by remodelling, labor disputes, force majeure (including reconstruction as a result of fire or other casualty) or conditions beyond the control of the occupant.

4. No part of the Center, except the Premises, shall be used as a food store or food department, or for the sale of groceries, meats, fish, produce, dairy products, bakery products, or any of them, for off-premises consumption, provided that nothing herein shall prevent (i) any occupant of the Center from selling such products as an incidental part of its principal business so long as the total number of square feet devoted to the display for the sale of such products does not exceed _____ of the total number of square feet of building area occupied by same or eight hundred (800) square feet, including, in either case, one-half (½) of the aisle space adjacent to any such display area, whichever is smaller, (ii) the operation of a restaurant (subject to the location provisions of Paragraph 5 below) which permits customers to "take out" orders, or (iii) the operation of a retail operation which derives at least _____ of its gross revenues from the sale of ice cream and similar related dairy products, and further provided

that this restriction shall cease to be in force and effect if the occupant of the Premises fails to conduct a business for the sale of groceries, meats, fish, produce, dairy products, bakery products, or any of them, for off-premises consumption, for three hundred sixty-five (365) consecutive days or longer subsequent to the opening for business of the Premises, except when such failure is caused by remodeling, labor disputes, force majeure (including reconstruction as a result of a fire or other casualty) or conditions beyond the control of the occupant.

5. No portion of the retail stores on Lot 4 or the first one hundred feet (100') of retail stores on Lot 5 to the east of the Premises shall be used as a restaurant without the written consent of Tenant. No portion of the Center, excluding the Premises, shall be used as a restaurant which permits "take out" of gourmet to go or home meal replacement items. This restricts Gourmet To Go, Boston Market, Marty's, EatZi's or similar establishments. The foregoing is not intended to restrict a pizza restaurant, Mexican food restaurant, oriental food restaurant, salad bar or restaurant selling primarily prepared sandwiches.

6. No portion of the Center shall be used for office use not ancillary to a retail business or as a car wash without the written consent of the occupant of the Premises.

7. The premises and the Center are encumbered by that certain Declaration of Reciprocal Easements and Restrictions dated the 17th day of October, 2000 (the "Declaration"), a copy of which is attached hereto marked Exhibit "C" and incorporated herein by reference. Tenant will not violate any provision of the Declaration, including but not limited to any use restrictions. Landlord agrees to enforce the terms and conditions of the Declaration.

8. The covenants contained herein shall be restrictive covenants running with any of the Center for which a fee estate or leasehold estate is held by Landlord and burdening any leasehold estate or possessory estate held by Landlord in any of the Center, and shall inure to the benefit of and be binding upon, the parties hereto and their respective heirs, successors and assigns, including, but without limitation, all subsequent owners of the Center or any portions or parcels thereof or any lessees or sublessees of the Center or any portions or parcels thereof, and all persons claiming under them.

IV. TERM

The obligation to pay rent and other expenses under this Lease shall commence on the Certificate of Occupancy date for the Premises or the Temporary Certificate of Occupancy date if Tenant's retail operation is allowed, whichever occurs first (the Commencement Date) and the term shall continue thereafter for twenty (20) years (the Original Term). After the Commencement Date Tenant's obligations for rent, Common Area maintenance and taxes shall be determined as provided for herein. A lease amendment reciting the Commencement Date, the exact termination date of the Original Term of this Lease, and the exact square footage of the Building as-built, shall be executed by both parties within thirty (30) days of the Commencement Date. Notwithstanding that there is a later Commencement Date for certain Lease obligations,

this Lease shall be a binding agreement between the parties from the date it is executed by the parties.

V. OPTION TO RENEW

1. The Landlord hereby grants and gives to Tenant, at Tenant's option, the right to renew this Lease for seven (7) additional five (5) year periods (singularly an Option Period or Option Term and collectively Option Periods or Option Terms), provided that the Tenant is not then in default under any material provision of this Lease which is not cured prior to commencement of the Option Period. All of the terms and conditions of this Lease are applicable during any Option Period.

2. Tenant may provide Landlord with a written notice of its exercise of an Option Term at least one hundred eighty (180) days prior to the expiration of the then current term (the "First Exercise Deadline") provided however that Tenant's right to exercise the Option Term shall not terminate until thirty (30) days after (the "Final Exercise Deadline") Landlord provides Tenant with a written notice (the "Exercise Notice") that Tenant's First Exercise Deadline passed and no notice exercising the Option Term was received by Landlord. If Tenant provides written notice of its exercise of its Option Term prior to the Final Exercise Deadline, the term of this Lease shall be extended.

If Tenant does not provide written notice of its exercise of its Option Term then the Lease shall terminate on the later of the scheduled termination date or thirty (30) days after the Final Exercise Deadline.

VI. RENT

1. "Store Base Rent" for the Premises shall commence on the Commencement Date (as defined in Article IV above) at a cost for each ground floor square foot in the Premises excluding the 831 square foot equipment room (as determined by an as-built survey or architect's certificate) per annum of _____ per square foot. Store Base Rent is payable on the first day of each month in equal monthly installments.

VII. CONSTRUCTION OF IMPROVEMENTS

1. Landlord has delivered to Tenant a Phase I environmental audit of the Center prepared by Rust Environmental and Infrastructure dated January __, 1998. Landlord has delivered to Tenant a geotechnical report for the Center prepared by Kumar & Associates, dated March 8, 2000. Landlord represents and warrants that to the best of Landlord's knowledge the Phase 1 audit and the geotechnical report are true and correct.

2. Tenant or a party approved and selected by Tenant shall act as architect and engineer for the design, construction and inspection of construction of the Building that is to be

erected by Landlord. Landlord shall reimburse Tenant for the architectural, engineering and construction inspection fees incurred by it on a time and materials basis up to a maximum amount of _____.

i. Said fees are the Building architectural fees, Building civil engineering fees, and other architectural or engineering fees relating to the construction of the Building, including construction inspection fees and architectural inspection fees. Tenant shall submit to Landlord draw requests for payment every thirty (30) days which shall be paid by the Landlord on or before the fifteenth day of the succeeding month, except that no payments need be made on any draw requests prior to Landlord's first draw on Landlord's construction financing.

3. Landlord, or its agent, at Landlord's expense, hereby agrees to erect upon the Premises the Building in accordance with the plans and specifications delivered to Landlord by Tenant (hereinafter referred to as "Building Working Plans") and to complete the site improvements and ancillary retail buildings attached to the Building on the Premises in accordance with the Site Plan and in an architecturally harmonious manner. The parking and lighting in the Primary Parking/Access Area shall be constructed to the following specifications: (1) PARKING LOT LAYOUT: The prime field (roughly defined as the area 180' either side of the main entry) shall be 70 degree angled parking. Stalls shall be 9'-0" wide (measured perpendicular to the stall). Parking bays shall be 58'-0" wide, consisting of 17'-0" parking, 24'-0" aisle, 17'-0" parking. Painted arrows and stalls within the parking lot shall indicate one - way circulation; (2) PARKING LOT LIGHTING: The prime field (as defined above) shall be designed to provide:

- a) Minimum foot - candle = 1.25
- b) Average maintained foot - candle = 4.5
- c) Average to minimum ratio = <4:1 or
maximum to minimum ratio = <10:1

4. It is agreed that no further substantial changes may be made in the Building Working Plans unless approved in writing by Tenant and Landlord. Neither party shall unreasonably withhold its approval. Notwithstanding the immediately preceding sentence, Tenant may make minor changes in the approved Building Working Plans which do not substantially affect the exterior appearance or quality of materials. Failure by Landlord to provide written disapproval for any proposed changes within ten (10) days of submission to Landlord, will constitute approval.

5. Landlord delivered to Tenant possession of the Premises prior to the execution of the Lease. Landlord's work was completed to the extent reasonably necessary for the commencement of the fixturing work to be done by Tenant, excepting those portions of Landlord's work which will not unreasonably interfere with Tenant's interior work. This exception to completion of Landlord's work includes any work which is dependent upon the progress or completion of Tenant's work, provided, however, Tenant shall be entitled to exclusive possession of the Premises (subject to the force majeure provisions of Article XLII

below) on or before November 26, 2000 for the purpose of stocking its store with merchandise. Landlord is to complete the Building with an interior decor package which includes a hung ceiling, lighting, painted walls, and vinyl composition floor covering, all in accordance with the approved Building Working Plans. Tenant will be responsible for placement of its customary store fixtures, furnishings and equipment generally described in Paragraph 8 below.

6. Landlord agrees, to the extent that such are assignable, to assign to Tenant, any and all guarantees or warranties of workmanship and materials which Landlord may receive from third parties for work performed on the Building.

7. Mitchell Plus Associates or another mutually agreed upon licensed architect (Tenant shall not unreasonably withhold its agreement to any architect), will be the Landlord's architect to design the Center site improvements, and the ancillary retail buildings. Landlord agrees to have the ancillary retail spaces designated "Retail Store A and Retail Store B", on the Site Plan completed as evidenced by a shell certificate of occupancy and all site improvements in the Center (excluding internal Common Area for Lots 2, 3 and 7 but including exterior curb, gutter and landscaping) no later than the Commencement Date. After the Commencement Date, Landlord agrees to keep all construction trailers, storage areas and staging areas in a location that will minimize the impact on access to the Premises and parking for the Premises. Any areas of Lots 1, 2, 3 and 7 not improved shall be either (a) fenced and screened or (b) capped to avoid blowing dirt and dust until construction is commenced.

8. Except as otherwise provided for herein, the Building constructed by Landlord hereunder and any additions, improvements, and alterations thereto, other than Tenant's equipment and trade fixtures, shall be the property of Landlord upon expiration or termination of this Lease, or upon Tenant's abandonment of the Premises, whichever shall first occur. Tenant's trade fixtures and equipment are generally listed as follows: Shelving, racking, counters, checkstands, computer equipment and wiring, telephone equipment and wiring, security equipment and wiring, safes, intercom systems, coolers and mechanical equipment supplying coolers, refrigerated cases, prep sinks, three compartment sinks, dock levelers, compressors, disposals, lighting fixtures, signs, icemakers, emergency generators, and any movable personal property not specifically listed above.

9. Landlord agrees to maintain or cause Landlord's contractor to maintain builder's risk insurance at all times during the construction of the Building, the site improvements and the ancillary retail buildings with companies licensed to do business in the State of Wyoming.

10. The obligations contained in this Article VII shall be in full force and effect upon execution hereof irrespective of the fact that the lease term commences at a later date.

VIII. LANDLORD NOT A PARTNER

It is understood and agreed between the parties hereto that their relationship at all times shall remain that of Landlord and Tenant, and that nothing herein contained shall be deemed, held, or construed as the creation of a partnership or joint venture as between the parties hereto in the conduct of either party's business; nor shall either party be liable for any debts, liabilities or obligations incurred by the other party in the conduct of its business.

IX. USE OF PREMISES

1. During the term of this Lease or any Option Term, Tenant may use the Premises for any lawful retail use or purpose that does not violate the Declaration. Tenant shall keep the Premises in a clean condition and in good state of repair. Tenant shall comply fully with all laws and ordinances relating to health and police regulations applicable to said use. Tenant shall keep in force at all times licenses, consents, and permits necessary or required by all federal, state and local agencies for the purposes herein provided and Tenant shall pay all personal property taxes, income taxes, license fees, and other taxes which are or may be assessed, levied, or imposed upon Tenant in connection with Tenant's operation of its business upon the Premises.

2. The Premises may be used and occupied by Tenant during such hours as Tenant deems appropriate (without an obligation for such use) in accordance with relevant laws and regulations for general store, convenience store, pharmacy, grocery store and supermarket purposes, for retail sale or rental of all items now or hereafter sold or rented in or from Tenant's combination stores or grocery stores, bakery departments, meat departments, general merchandise, seafood departments, pharmacy departments, perishable items departments and supermarkets and for such uses as are, or may become part of its grocery store, combination store and supermarket operations. This Lease does not require Tenant to continuously operate.

3. Tenant may use the sidewalks owned by Landlord immediately in front of the Premises (and is hereby granted an easement for such use) for purposes of shopping cart storage and the storage and sale of merchandise. It is hereby understood and agreed that the perimeter sidewalks adjacent to the Building are part of the Common Area. In addition Tenant may store shopping carts or corrals in the Common Area parking.

X. WARRANTY OF USE

Landlord warrants that to the best of its knowledge and belief, at the time of execution and delivery of this Lease, there are no agreements, leases, ordinances, regulations or private restrictive covenants prohibiting the use of the Premises for the operation of a business involving the sale of general merchandise, perishables, pharmaceuticals, groceries, bakery products, meat, fish and related items of merchandise at retail. Landlord shall not permit any exclusive use or restrictive use agreement, lease or covenant to burden the Premises, except as specifically set forth in the Declaration.

XI. MAINTENANCE

1. Tenant shall maintain and repair all of the Premises, including, but not limited to, the interior, the exterior, the non-structural and the structural portions of the Premises, the roof and the HVAC system unless the damage or repair is the result of Landlord's employee's or agent's negligent or willful act in which event Landlord shall be obligated to make the repair. Landlord shall assign to Tenant all warranties and guarantees relating to the roof and structural portions of the Premises. Tenant will keep the Premises in good order and condition, except for ordinary wear and tear, and shall promptly, and at Tenant's own cost and expense, make all necessary repairs, whether exterior or interior, to all non-structural parts of the same. Tenant shall also be responsible for its trash removal, snow and ice removal from the sidewalk immediately adjacent to its Premises, debris removal from the sidewalk immediately adjacent to its Premises and debris removal generated by its trash compactor in the Common Area behind the Premises. It is agreed that even though Tenant has agreed to assume said responsibilities (i.e. trash removal, snow and ice removal, and debris removal) in certain areas which are outside the Premises, Landlord shall be responsible for maintaining general liability insurance concerning those areas as outlined in Article XIV.

2. When used in this Lease, the term "repairs" shall include replacements or removal, when necessary, and all such repairs shall be equal or better in quality and class to the original work. This shall not be construed to require Tenant to replace or reconstruct any improvement or fixture (including the heating, ventilating and air conditioning components) prior to termination of the Lease according to its terms so long as same have been suitable for Tenant's use prior to termination and are operable.

3. Landlord agrees to insure, service, maintain and repair, throughout the term of this Lease and any Option Periods all parking and "Common Areas" within the Center. Landlord shall cause successor owners of pads in the Center to service, maintain and repair all access areas, drive areas and other Common Areas on each owners parcel throughout the term of this Lease. The insuring, servicing, maintenance and repair shall include by enumeration, and without limitation, lighting, cleaning, sweeping, landscaping, snow and ice removal, painting, parking striping, parking area repair and maintenance, directional signals, policing and carrying of sufficient property damage and public liability insurance. Landlord's insurance requirements for the Center are as provided for in Article XIV below. Landlord's obligations for maintenance of the Center as an owner of Lot 6 are contained in that certain Agreement for Operation and Maintenance for Common Areas for Dell Range Marketplace dated October 17, 2000 (the "CAMA"). Tenant shall bear its share of those expenses for the Center as if it were the owner of Lot 6 with the exception that Tenant shall not pay any Maintenance Director service fee under Section 6.07 of the CAMA, a copy of which is attached as Exhibit "D" and incorporated herein by reference. Landlord and Tenant agree that the monthly Store Base Rent set forth above includes the amount of _____ for management fees, which amount shall be Tenant's only obligation to Landlord for Landlord's or Maintenance Director's costs associated with the management of the Common Areas for the Center or the Center.

4. Tenant shall not be liable for any portion or share of costs or expenses attributable to painting, repairs, or maintenance to any other building in the Center or for the trash removal from any other building, tenant or user in the Center. Landlord is required to cause the other buildings and improvements in the Center to be maintained in good order and repair and to provide for trash storage in enclosed bins or containers for other buildings, tenants and users and trash removal on a reasonable basis to avoid the overflow of trash from the bins or containers.

5. Should Landlord be required to make any repairs occasioned by Tenant's negligence or negligence on the part of Tenant's officers, agents or employees, or should Tenant neglect or refuse to make repairs in accordance with Paragraph 1 above within a reasonable period of time, Landlord may make such repairs and upon completion of such repairs, Tenant shall pay Landlord's cost for the making of such repairs, upon presentation of bills and documentation evidencing payment of the costs and expenses, as additional rent. The receipted bills of independent and unrelated mechanics or contractors employed by Landlord, showing the payment by Landlord for the making of such repairs shall be prima facie evidence of the reasonableness of such charges and that the same has been paid by Landlord.

6. Landlord shall at all times use reasonable efforts to maintain or cause to be maintained the Common Areas of the Center, including access areas, truck dock areas, ramp areas, parking lots and sidewalks, free and clear of snow, ice and other dangerous conditions, provided, however, if there exists a condition that in Tenant's reasonable opinion requires immediate attention to provide customer or delivery access to the Common Areas or the Premises and Tenant has either given telephonic or facsimile notice to Landlord of the condition and Landlord does not commence the necessary repair or correction without delay, then in that event, Tenant shall have the right to cause the defect to be corrected or snow and ice removed, as the case may be. Landlord shall reimburse Tenant for the reasonable cost of such work, less Tenant's share of the cost to be paid under Paragraph 3 above of this Article XI, or Tenant shall be entitled to offset its rent by such an amount. Such undertaking by the Tenant shall not release the Landlord of any liability of the Landlord incurred because of Landlord's default.

7. Tenant may require Landlord to make the following Common Area improvements of a capital nature on the Center: replacement of utility lines; repaving of the parking areas; and replacement of parking area lights. Tenant pays to Landlord as part of its Store Base Rental for each ground floor square foot of area in the Premises as a reserve for capital improvements in the Center, including, but not limited to utility line replacement, parking lot repaving and parking lot lighting replacement. Tenant shall have no further obligation for the cost of Common Area capital improvements.

8. It is understood by the Landlord that it is of the utmost importance to the Tenant that Landlord use reasonable efforts to maintain or cause to be maintained the Common Area of the Center in a first class condition and that all repairs and maintenance required hereunder be done with due diligence and reasonable speed so that the business of the Tenant will not be interrupted by failure of prompt and necessary maintenance. Tenant shall have a continuing right

in the event that the repair and maintenance as above provided is not of the standard set forth to be maintained by the Landlord, after notice under Article XXIX below and expiration of Landlord's cure period, to seek such legal remedy as is available and/or Tenant may cause the maintenance to be performed and bill Landlord for same. If Landlord fails to pay such bill within fifteen (15) days after presentment of the bill by Tenant, Tenant may offset any reasonable expenditures made to take such action against the rent due or to become due, or the maintenance charges due or to become due.

9. Landlord or its agent shall have the right to enter into the Premises at all reasonable hours for the purpose of inspecting the same, and any additions, repairs or alterations thereto. The exercise of this right to enter the Premises shall not be deemed an eviction or disturbance of Tenant's use of possession.

10. Tenant will pay its share of Common Area expenses pursuant to Paragraph 3 above of this Article XI, consistent with Section 7.01 of the CAMA and the approved budget. Any overpayment made by Tenant shall be reimbursed to Tenant when received by Landlord under the CAMA. Landlord shall cause the Maintenance Director under the CAMA to provide Tenant with back-up documentation for actual expenses as Tenant may reasonably require. Tenant will pay its costs to maintain and operate signs pursuant to Article XXI, Paragraphs 1 and 2 below within thirty (30) days of receipt of an invoice from Landlord.

XII. TAXES

1. Tenant covenants and agrees to pay to Landlord as additional rent, before any fine, penalty, interest, or cost be added thereto for the nonpayment thereof (so long as Landlord has provided Tenant with at least thirty (30) days prior written notice of same and a copy of the tax statement) its "Proportionate Share" (as defined below) of all real estate taxes, real estate assessments, and other similar governmental charges, which at any time during the Original Term of this Lease or any Option Period may be levied, assessed, or charged upon or with respect to Lots 4, 5 and 6 in the Center. Tenant's Proportionate Share shall initially be 70.57% based upon the buildable square footage of buildings on Lots 4, 5 and 6 of the Center calculated by taking the Building's total ground floor square footage (estimated at 61,887 sq. ft) and dividing that figure by the total buildable square footage for Lots 4, 5 and 6 of the Center pursuant to the Final Development Plan approved by the City of Cheyenne, Wyoming (87,700 sq. ft.). If the buildings depicted on the Site Plan as ultimately constructed have square footages, inclusive of exterior walls, greater than or less than as shown on the Site Plan, then the Tenant's Proportionate Share shall be recalculated using the as-built square footages of the buildings in lieu of approved buildable square footage. The recalculation would also include any building area for those lots within the Center on which no building areas were shown on the Final Development Plan.

2. Landlord warrants that, to the best of Landlord's knowledge, it has disclosed to Tenant any and all taxes or assessments now levied or assessed upon the Premises or the Center

and any and all taxes or assessments which are proposed and which may result in a levy or assessment against the Premises or the Center. Landlord covenants and agrees not to have the Premises or the Center included voluntarily or at the request of Landlord in any special improvement district, special assessment district or special tax district without Tenant's prior written consent.

3. Landlord shall deliver to Tenant, when requested, duplicated receipts or photostatic copies showing payment of all said taxes, assessments, and other impositions, within thirty (30) days after the respective final payment dates.

4. Landlord shall within twenty (20) days of receipt deliver to Tenant copies of all valuation notices, notices of possible inclusion in assessment or taxing districts or other notices that affect the taxes or assessments for the Center. If Landlord elects not to do so, Tenant may contest in good faith, by appropriate proceeding, at Tenant's expense, including any interest or penalty and attorney's fees, if any, and in Tenant's or Landlord's name, any tax, assessment, or valuation of the Center or improvements or any portion thereof, provided that by posting bond or other similar mechanism Tenant's challenge does not subject Landlord or other tenants to risk of loss through eviction, foreclosure or tax sale. In such event, Landlord will reasonably cooperate with Tenant and will execute any document which may be necessary or proper for any such proceeding. If Tenant shall in good faith, proceed to contest any such tax or assessment or other charge against the Center or any portion of the Center or improvements thereon or the validity thereof by proper legal proceedings and in accordance with this paragraph, which shall operate to prevent the collection thereof or the sale of said premises or any part thereof to satisfy the same or to prevent the appointment of a receiver because of the nonpayment of any such tax, assessment, or other charge, Landlord shall not, pending the termination of such legal proceedings, have the right to pay, remove or discharge any tax assessment, and Tenant shall not be required to pay, discharge, or remove any such tax, assessment, or other charge. If Tenant contests any tax, assessment or charge, on parts of the Center in addition to the Premises, then Landlord shall reimburse Tenant for a portion of its costs and expenses incurred if the protest or contest is successful. The portion to be reimbursed shall be calculated by deducting from said costs and expenses the amount that would have been Tenant's Proportionate Share and the balance is to be paid by Landlord. In no event shall the Landlord be required to reimburse Tenant an amount in excess of the tax savings that will be realized by Landlord.

5. Landlord or Tenant may petition the local taxing authority and obtain a separate real estate tax bill for the Premises (the Building) together with the land area of Lot 6 Dell Range Marketplace (collectively the "Kings Tax Lot"). If such petition is granted, in lieu of paying a Proportionate Share of real estate taxes for the Premises and Lots 4, 5 and 6 of the Center as above provided, Tenant shall pay all real estate taxes and assessments levied against the Kings Tax Lot. Tenant shall pay the same on or before the due date thereof, failing which Landlord may pay such real estate taxes and assessments and Tenant shall reimburse Landlord within ten (10) days after delivery of written notice from Landlord. If Tenant desires to contest real estate

taxes and assessments assessed against the Kings Tax Lot, then Tenant shall proceed as provided for in Paragraph 4 above.

6. It is expressly agreed that Tenant shall not be obligated to pay any capital levy or corporate franchise tax levied or imposed upon Landlord, or any estate, inheritance, successor, or transfer tax upon any passing of Landlord's interest in the Premises, or any income tax, profits tax, excise tax, rent tax, or other tax or charge that may be payable or chargeable to Landlord under any present or future law of the United States or the state where the Premises are located, or imposed by any political or taxing subdivision thereof, or any governmental agency, upon or with respect to the rent received by Landlord under this Lease, unless such other taxes are in lieu or substitution of existing ad valorem taxes.

XIII. UTILITIES

Tenant shall timely pay all charges made against the Premises, for gas, water, sewer, heat, electricity, and all other utilities during the term of this Lease and any Option Term.

XIV. INSURANCE

1. Tenant shall place and maintain for the Premises commencing with Tenant's occupancy of the Premises or Commencement Date of the term of this Lease and thereafter during the term of this Lease and any Option Term, at Tenant's sole cost and expense, fire and extended coverage insurance and insurance against such other hazards as may be reasonably required by Landlord on the building and all improvements located on said Premises in an amount equal to the full replacement value of the Building and other improvements comprising the Premises with loss payable to the Landlord as an additional insured. Upon written request from Landlord Tenant shall add Landlord's mortgagee as an insured as the mortgagee's interest may appear.

2. Tenant shall place and keep in effect during said period, at the sole cost and expense of Tenant, comprehensive general liability coverage with minimum limits of liability for bodily injury to one person in the amount of _____ and for bodily injury to any group of persons as a result of one accident, in the amount of _____.

Tenant agrees that it will place and keep in effect during said period a liability policy providing insurance coverage for damage to property in the amount of _____.

j. All of the policies of liability insurance shall name Landlord as an additional insured and upon written request of Tenant, Tenant's mortgagee shall be an endorsed additional insured. All of such policies may carry a deductible clause of up to _____

with the understanding and agreement by Tenant that Tenant shall and hereby does indemnify and save harmless the Landlord for damage to property and persons in the amount of such deductible figure from losses that would otherwise have been covered by policies without such deductible clause. Tenant shall provide Landlord certificates evidencing such coverage. Landlord may include as part of Landlord's insurance coverage business

interruption insurance or loss of rent insurance providing coverage for the loss of income or rents from the Center due to fire or other casualty. If requested to do so by Landlord in writing, Tenant agrees to increase the coverage limits stated above consistent with reasonable industry standards provided the amounts are in accord with Tenant's own corporate guidelines for leased space with a comparable use.

3. Landlord agrees to maintain liability insurance against claims for bodily injury, death, or property damage occurring on, in or about the common area of the Property, with limits of not less than _____ as to claims of any one person, and an aggregate limit of not less than _____ for claims in any one occurrence and not less than _____ for property damage. All of the policies of liability insurance shall name Tenant as an additional insured. Landlord shall provide Tenant certificates evidencing such coverage.

4. Tenant's and Landlord's policies of insurance shall contain a provision providing for thirty (30) days' prior written notice to Landlord or Tenant prior to any cancellation. Certificates evidencing the insurance required to be maintained hereunder shall be deposited with the other party by the insuring party promptly upon request and the insuring party agrees to provide certificates of insurance to any mortgagee of any party upon written request.

5. If Landlord or Tenant shall fail, refuse, or neglect to obtain any insurance required to be maintained by it under this Article, or to furnish the other party with satisfactory evidence of payment of the premium of any policy, the other party shall have the right, at its option, to purchase such insurance and to pay the premiums thereon or to pay the premium on insurance which the other party should have paid for. All such payments made by Tenant shall be recoverable by Tenant by offset to any rental due hereunder, any such payments made by Landlord shall be recoverable as additional rent, and shall be payable within fifteen (15) days of receipt of a billing for same accompanied by a supporting invoice.

XV. FIRE OR OTHER CASUALTY

1. Tenant covenants and agrees, except as hereinafter provided, that in the event of damage to the Premises or improvements thereon, or destruction of the whole or any part thereof, by any cause whatsoever, Tenant will, subject to Paragraph 4 hereof, proceed immediately and diligently to restore them to the same or equivalent condition or status that they were in, or required to be kept in, before such destruction or damage. In the event any net proceeds from insurance shall remain after completion of such restoration of the Premises, the excess shall belong to Tenant. The rent payable herein shall abate during the period of any restoration or reconstruction from date of casualty until the earlier of (a) three hundred sixty-five (365) days after the date of the casualty, or (b) the date Tenant reopens for business, except that if Tenant opens for business during any restoration or reconstruction period then Tenant's rent shall be reduced in the same percentage as the untenable portion during the reconstruction or restoration of the Premises bears to the total Premises.

2. Before any repair or restoration work is undertaken, Landlord shall have the right to receive and approve a copy of the plans and specifications and a certificate as to the probable cost of the work, to be furnished by an architect employed by Tenant, or an estimate or estimates from the general contractor or other contractors who will do the work. The approval of Landlord under this paragraph shall not be unreasonably withheld and shall be deemed given unless Landlord provides written notice that it is not approved within ten (10) days of receipt of such confirmation.

3. Should the repair and restoration required as the result of any fire or other casualty loss exceed the insurance funds, then the Tenant shall pay such funds necessary to complete the repair or restoration of the Premises.

4. In the event the Building on the Premises is damaged or destroyed by perils insured against to the extent of thirty percent (30%) or more of the then monetary value of said improvements, during the last two (2) years of the Original Term or during any Option Term, Tenant may, at its option, cancel this Lease. Any insurance proceeds shall be paid to Landlord if Tenant elects to terminate and Tenant shall have no obligation to rebuild as provided for in Paragraph 1 above, but Tenant shall have the obligation to fund any deficiency under Paragraph 3 above. Such cancellation and termination shall be effected by written notice from Tenant within sixty (60) days of the occurrence of such casualty. If such notice be given to Landlord, the term of this Lease shall end upon the date of such notice. If such notice is not given by Tenant within such time, this Lease shall remain in full force and effect.

5. In the event of damage or destruction of other buildings or improvements in the Center, Landlord shall either (i) proceed diligently to restore them to the same or equivalent condition or status that they were in before such damage or destruction; or (ii) demolish any structures, grade the area, put an asphalt cap on the area, make the area available for parking and make such cosmetic changes to the Premises or other remaining structures so as to maintain the architectural theme of the Center and the general appearance of the Center as existed prior to the casualty. If Landlord elects the second alternative Landlord shall maintain said area until such time as Landlord rebuilds. Any rebuilding shall not expand or alter the gross building floor area for the Center without Tenant's prior written consent. All rebuilt improvements shall maintain the architectural theme of the Center existing prior to the damage or destruction.

XVI. EMINENT DOMAIN

1. In the event that any portion of the Premises is taken by condemnation, then, for a period of one hundred twenty (120) days after the later of (i) Tenant's actual written notice of such taking, or (ii) the actual date of such taking, Tenant shall be entitled to terminate the Lease and thereupon the parties shall be relieved from all liability under the Lease. In the event that more than ten percent (10%) of the Primary Parking/Access Area designated on the Site Plan is taken by condemnation and Tenant reasonably determines in good faith that the Premises are not suitable for its continued use, by reason of such condemnation, Tenant shall be entitled to

terminate the Lease if written notice of such termination is given by Tenant to Landlord within one hundred twenty (120) days after such condemnation and upon such termination the parties shall be relieved from all further liability under the Lease. If Tenant fails or is unable to terminate the Lease in accordance with this Paragraph, Store Base Rent shall be reduced by the proportionate amount of Building area, in the case of the Premises, or in a fair and equitable manner if the taking is within the Primary Parking/Access Area. Landlord, in such an event, shall restore forthwith, to the extent permitted by applicable zoning ordinances, building codes and other laws the Premises taken or affected by the condemnation to provide the same approximate location, size and configuration of Building area as well as all light standards, parking spaces, sidewalks, driveways and vehicular access points to adjacent roadways existing prior to the condemnation. During the time period of such restoration, Store Base Rent, Common Area charges, tax payments and insurance payments shall abate if the Premises are not tenantable or shall be reduced in a fair and equitable manner if Tenant's occupancy is merely disrupted. The term "condemnation" as used in the Lease shall include all conveyances in anticipation or in lieu of an actual taking.

2. All damages awarded for any taking of the fee title to the Center or any portion thereof or to the leasehold created hereby shall be distributed and applied as follows: First, any bona fide, third party, first mortgagee or beneficiary under a first deed of trust shall receive the outstanding balance of its mortgage or deed of trust related to the Center, second, Tenant shall receive amounts equal to the damage to the leasehold estate created hereby in the event of a total taking or a termination under the provisions hereof, and, then, the Landlord shall receive the balance. Tenant shall have the right to obtain (if awards are then made for such) any award or damage (i) for any loss of Tenant's business; (ii) for the cost of removal of Tenant's stock in trade, trade fixtures and equipment; and (iii) loss to or damages for Tenant's stock in trade, trade fixtures and equipment.

3. Landlord shall promptly advise Tenant of any condemnation notice or action. Tenant shall have the right to intervene in any such action as an interested party. Landlord shall not enter into any settlement or agreement for any condemnation award without the prior written consent of Tenant. In the event an agreement cannot be reached between the parties concerning the amount and distribution of proceeds under the provisions of the preceding paragraph, and if the condemnation proceeding has not established the amounts and distribution of such, then Landlord and Tenant agree that a valuation shall be made by subsequent proceeding before the same condemnation commission, jury or court as the case may be, or if the matter cannot be heard by such commission, jury or court the matter shall be determined in the District Court for the County of Laramie, State of Wyoming.

XVII. ALTERATIONS

1. Tenant, at its own expense, may after notice to Landlord and the provision of plans and specifications to Landlord, have the right, during the term hereof or any renewal term, to make such alterations, additions, installations, changes and improvements in and to the

Premises as may be necessary for Tenant's purposes, provided that such alterations, additions, installations, changes and improvements shall not lessen the value of the Premises, increase the square footage of the Premises or impair the structural strength of the Building and if any alteration or change is to the exterior of the Premises or is structural in nature, Tenant shall receive Landlord's prior approval, which approval shall not be unreasonably conditioned, withheld or delayed. Landlord shall be deemed to have approved any proposed alteration or change if it does not provide written notice of disapproval withing twenty (20) days of receipt of Tenant's notice. During the period in which such alterations are under way Landlord shall have the right to post the Premises with a notice of nonliability as provided for under the then-existing laws of the State of Wyoming for mechanics' lien protection.

2. Should any alterations, additions, installations, changes, and improvements in or to the Premises or any part thereof be required during the term hereof, by any governmental regulations arising from Tenant's specific use of the Premises, the same shall be made by and at the cost of Tenant.

3. Fee title to all alterations, additions, installations, changes and improvements made by Tenant upon the Premises, except fixtures and equipment as provided in Article XIX hereof, shall become the property of Landlord upon being permanently affixed to the property. Tenant shall have thirty (30) days after termination or expiration of the lease to remove fixtures or equipment not permanently affixed, except that Tenant shall pay to Landlord an amount equal to per diem rent for each day after termination, up to thirty (30) days, that Tenant uses for such removal. Any such removal shall be at Tenant's peril and shall cause no damage to the structural strength of the Building, interior mechanical, electrical, or other systems or exterior of the improvements. In the event the Tenant has not removed its trade fixtures and equipment within said thirty (30) day period, the Landlord may, at its option, have the same removed from the Premises at the sole expense of the Tenant.

XVIII. MECHANICS' LIENS

Tenant will not at any time permit any mechanics', laborers', or materialmen's liens to stand against the Premises for any labor or material furnished to Tenant or claimed to have been furnished to Tenant or to Tenant's agents, contractors, or sublessees, in connection with work of any character performed, or claimed to have been performed on the Premises by, or at the direction or sufferance of Tenant, and Tenant shall indemnify and hold Landlord harmless from and against any such liens. If any such lien shall at anytime be filed against the Premises, Tenant, within sixty (60) days after notice of the filing thereof will cause it to be discharged of record by payment, deposit, bond, order of a court of competent jurisdiction, or otherwise. Tenant shall have the right to contest the validity or amount of any such lien or claimed lien. On final determination of the lien or claim for lien, the Tenant will immediately pay all final judgments rendered with all proper costs and charges, and shall have the lien released or judgments satisfied at Tenant's own expense. If Tenant fails to cause such lien to be discharged as aforesaid, then in addition to any other right or remedy, Landlord may, but shall not be

obligated to, discharge said lien either by paying the amount claiming to be due or by procuring the discharge of such lien by deposit or by bonding proceedings, and in any such event, Landlord shall be entitled, if Landlord so elects, to compel Tenant to defend any action on the foreclosure of such lien, or to pay the amount of any judgment in favor of the lienor with interest, costs, attorneys' fees and allowances. Any amount so paid by Landlord and all costs and expenses incurred by Landlord in connection therewith, together with interest thereon at the rate equal to the lesser of (a) the maximum lawful rate or (b) two percent (2%) over prime, as quoted by US Bank, from the respective date of Landlord's making the payments and incurring of the costs and expenses shall constitute additional rent payable by Tenant under this Lease and shall be paid by Tenant to Landlord within ten (10) days of written demand therefor. Nothing in this Lease contained shall be deemed or construed in anyway as constituting the consent or request of Landlord, express or implied, by inference or otherwise, to any contractor, subcontractor, laborer or materialman for the performance of any labor or the furnishing of any materials for any specific alteration, addition, improvement or repair to the Premises, or any part thereof, nor as giving Tenant any right, power, or authority to contract for or permit the rendering of any services or furnishing of any materials that would give rise to the filing of any lien against the Premises or any part thereof.

XIX. FIXTURES AND EQUIPMENT

It is specifically understood and agreed that Tenant shall own any and all removable trade fixtures, equipment, or machinery, or any other personal property installed by Tenant, but not permanently affixed to the Building, during the Original Term of this Lease or any Option Term, and Tenant may, at any time, remove the same from the Premises, except anything constituting a permanent installment or a part of the building. Tenant shall make any structural or other repairs necessary as a result of the removal of said non- permanently installed fixtures and equipment.

XX. INVESTMENT CREDIT

INTENTIONALLY DELETED.

XXI. SIGNS

1. Landlord agrees to construct upon the Center two (2) Center monument sign(s). One will be north of Lot 1 at the Center entry and one will be east of Lot 3 at the Center entry. The Landlord agrees to construct one Center pylon sign to be located on Lot 8 at the Center entry. Tenant shall have the identification name and logo of Tenant's business occupying sixty-two and one-half percent (62.5%) (the "Sign Ratio") of the pylon sign's area in the most predominant location (as selected by Tenant) in a configuration accommodating Tenant's tradename logo. Tenant agrees to pay for all costs to fabricate and install its fascia portion of the sign displays. Landlord shall pay for all costs to fabricate and install the signs with electrical service. Tenant shall pay all costs to maintain and operate the two monument signs. Tenant shall pay its share of costs to maintain and operate the pylon sign based on the Sign Ratio.

2. Except for signs which are located wholly within the Building and which are not visible from the exterior of such Building, no sign shall be placed, erected, maintained, or painted at any place upon the Premises without the prior written consent of Landlord as to the size, design, color, location, content, illumination, and mobility thereof. Landlord shall not unreasonably withhold its consent to any sign. Landlord hereby consents to the installation of ATM identification signs, Tenant's identification signs and identification signs for its sublessees on the exterior walls of the Store Building provided said signs are consistent with applicable laws and regulations. Provided Tenant obtains Landlord's prior written consent as aforesaid, Tenant may, to the extent allowed by law or public regulation, place, erect, maintain, or paint signs upon the Premises, provided they are maintained by Tenant in good condition during the term hereof. Tenant shall remove all signs at the termination of this Lease, repairing any damage caused by the installation and/or removal thereof.

3. During the last one hundred twenty (120) days of the Original Term or the last one hundred twenty (120) days of the final Option Term hereof, Landlord shall have the right to place "For Rent" or "For Sale" sign, upon any portion of the exterior of the Premises, other than the windows thereof; provided, however, that such signs shall not obstruct Tenant's name.

XXII. ASSIGNMENT AND SUBLETTING

Tenant may sublet or assign the Premises, or any portion thereof or assign its rights under this Lease. In the event of any assignment Tenant shall remain liable to Landlord for the performance of Tenant's obligations under the Lease, unless Landlord approves the financial ability of the assignee prior to assignment and expressly relieves Tenant of said liability, provided, however, that Landlord shall have no obligation to release Tenant and any release shall be in Landlord's sole discretion. If this Lease is assigned or the Premises or any portion sublet under this paragraph, the terms of this paragraph shall survive and be effective for any subsequent assignment or subletting.

XXIII. INDEMNIFICATION

1. Tenant shall not be responsible nor liable for, and Landlord agrees to indemnify, defend and hold Tenant harmless from all claims, damages, expenses (including attorney fees), liabilities, and judgments for injuries to persons, loss of life or damage to property occurring in the Center (not including the Premises) and on the streets and sidewalks adjacent to the Center or growing out of or connected with the use or non-use, condition, or occupation of the Center or of such streets and sidewalks (except such injury, loss of life or damage occurring in or on the Premises or to the extent caused by Tenant's negligence), including, damage or injury occasioned by the negligence of Landlord, its designated agents, servants, contractors, licensees, or employees. In the event any action or proceeding is brought against Tenant by reason of any claim as hereinabove described, Landlord, upon notice from Tenant, covenants at Landlord's cost and expense to resist or defend such action or proceeding or to cause it to be resisted or defended by an insurer.

2. Landlord shall not be responsible nor liable for, and Tenant agrees to indemnify, defend and hold Landlord harmless from all claims, damages, expenses (including attorney fees), liabilities, and judgments for injuries to persons, loss of life or damage to property occurring in the Premises, unless and to the extent such is caused by the actions of Landlord or results from faulty construction of the Building. The indemnity includes damage or injury occasioned by the negligence of Tenant, its designated agents, servants, contractors, licensees, or employees. In the event any action or proceeding is brought against Landlord by reason of any claim as hereinabove described, Tenant, upon notice from Landlord, covenants at Tenant's cost and expense to resist or defend such action or proceeding or to cause it to be resisted or defended by an insurer.

XXIV. TITLE AND POSSESSION

Landlord covenants and warrants that at the time of signing and delivery of this Lease, Landlord has full power and lawful authority to let, demise, and lease the Premises in the manner and form as aforesaid. Provided Tenant pays all rent and other charges herein provided and observes all covenants of this Lease, the Landlord shall and will warrant and forever defend the Premises in the quiet and peaceable possession of the Tenant against all and every person or persons lawfully claiming the whole or any part thereof, subject, however, to any provisions in this Lease providing for the termination hereof, either at Landlord's or Tenant's option or otherwise and Landlord agrees to defend the Tenant's possession thereof and to reimburse and hold the Tenant harmless from all damages and expenses which the Tenant may suffer by reason of any eviction by a holder of paramount title. Landlord further warrants that it holds title to the Center as the fee title holder.

Landlord has delivered to Tenant prior to the execution of this Lease an ALTA Leasehold Title Commitment for the Premises in the amount of _____ from Chicago Title Insurance Company (Title Company), Commitment No. LCA-01224-00 with an effective date of August 30, 2000. Tenant has approved in writing those title exceptions listed on Exhibit "E" attached hereto and incorporated herein by reference (Permitted Exceptions). Landlord agrees to pay for and deliver to Tenant within twenty (20) days after the recording of the Memorandum of Lease provided for in Article XXXIII a leasehold title policy containing only the Permitted Exceptions.

XXV. CONDITION OF PREMISES UPON SURRENDER

At the expiration of the Original Term or any Option Term, Tenant will quit and surrender the premises hereby leased broom-swept and in as good a state and condition as when received, reasonable wear and tear excepted. In the event Tenant alters, remodels, or improves the Premises in accordance with its right hereinbefore granted, it shall not, at the expiration of said term or expiration of any renewal term, be required to restore the same to the condition the Premises were when Tenant took possession, but Tenant may surrender the same in their altered, remodeled, and improved condition without any further liability.

XXVI. HOLDING OVER THE PREMISES

In the event Tenant continues to occupy the Premises after the last renewal period hereof, or, having given notice that it does not intend to exercise any renewal option but nevertheless continues to occupy the premises after the expiration of its then current term, then such occupancy shall create a tenancy at will only and shall, in no event, be deemed a renewal of this Lease, and either party may terminate said tenancy at will upon notice to the other party in accordance with the laws of the State of Wyoming. During such tenancy at will, Tenant shall be bound by all the terms and conditions contained herein except that Store Base Rent shall be _____ of the then current Store Base Rent.

XXVII. NONDISTURBANCE, ATTORNMENT AND MORTGAGING

1. So long as the Tenant is not in default in the payment of rent or additional rent or in the performance of any of the terms of this Lease, the Tenant's possession of the Premises and the Tenant's rights and privileges under the Lease or any renewal thereof shall not be diminished or interfered with by any mortgagee.

2. In the event any mortgage covering the Premises is foreclosed for any reason or the mortgagee succeeds to the interest of the Landlord under the Lease, the Tenant shall be bound to the mortgagee under all of the terms of the Lease for the balance of the term thereof remaining with the same force and effect as if the mortgagee were the Landlord under the Lease, and the Tenant hereby attorns to the mortgagee, as its Landlord, such attornment to be effective and self-operative without the execution of any further instrument on the part of either of the parties hereto, immediately upon the mortgagee succeeding to the interest of the Landlord under the Lease. Notwithstanding anything herein to the contrary, the Tenant shall be under no obligation to pay rent to the mortgagee until the Tenant receives written notice from the mortgagee with supporting legal documentation that it has succeeded to the interest of the Landlord under the Lease.

3. In the event that the mortgage is foreclosed for any reason and the mortgagee succeeds to the interest of the Landlord under the Lease, the mortgagee shall be bound to the Tenant under all of the terms of the Lease, and the Tenant shall, from and after such event, have the same remedies against the mortgagee for the breach of an agreement contained in the Lease that the Tenant might have had under the Lease against the prior Landlord thereunder.

4. Tenant may mortgage its leasehold interest herein without the consent of Landlord, provided that Tenant shall remain liable to Landlord under the Lease in the event of foreclosure. Landlord shall accept the mortgagee as lessee under this Lease in the event of a foreclosure or execution on the leasehold estate.

5. Landlord and Tenant each agree to upon request execute and deliver to the other party a subordination, non-disturbance and attornment agreement in the form attached hereto as

Exhibit "F" and incorporated herein by reference. Tenant agrees to provide Landlord with an estoppel certificate in the form attached hereto as Exhibit "G" and incorporated herein by reference within twenty (20) days of Landlord's request.

XXVIII. DEFAULT BY TENANT

1. In the event Tenant shall at any time be in default in the payment of rent herein reserved, or of any other sums required to be paid by Tenant under this Lease, or in the performance of or compliance with any of the terms, conditions, covenants, or provisions of this Lease, then and in addition to any other rights or remedies Landlord may have under this Lease and at law and at equity, Landlord shall have the right to terminate the Lease and to enter upon and re-enter the Premises and may dispossess Tenant and remove Tenant and all other persons and property from the Premises and may have, hold, and enjoy the Premises and the right to receive rental income of and from the same. All such actions shall be brought under the forcible entry and detainer laws of the State of Wyoming.

2. Notwithstanding anything hereinabove stated, Landlord agrees that Landlord will not exercise any right or remedy provided for in this Lease or allowed by law because of any default of Tenant, unless Landlord shall first have given written notice thereof to Tenant, and Tenant, within a period of ten (10) days thereafter shall have failed to pay the sum or sums due, if the default consists of the failure to pay money, or, if the default consists of something other than the failure to pay money, Tenant shall have failed within thirty (30) days thereafter to begin the correction of the default or thereafter fails to actively and diligently in good faith proceed with and continue the correction of the default until it shall be fully corrected. If the default is the failure to pay sums or sums due as Rent or Additional Rent and it is not cured in the ten (10) day notice period then interest shall be paid by Tenant from the original due date until paid at the rate equal to the lesser of (a) the maximum lawful rate or (b) two percent (2%) over prime per annum, as quoted by US Bank, N.A.

3. No waiver by Landlord of any breach by Tenant of any of Tenant's obligations, agreements or covenants herein shall be a waiver of any subsequent breach or of any obligation, agreement, or covenants, nor shall any forbearance by Landlord to seek a remedy for any breach by Tenant be a waiver by Landlord of any rights and remedies with respect to such or any subsequent breach.

XXIX. DEFAULT BY LANDLORD

1. Tenant shall give Landlord written notice of any default by Landlord in the performance of any covenant or obligation to be kept or performed hereunder. In the event such default continues for a period of thirty (30) days after receipt of written notice thereof by Landlord, and provided such default by Landlord can be cured by the payment of money, Tenant, at its election and not as a waiver of other common law actions or remedies, may spend such money as is reasonably necessary to cure such default and therefore deduct the amount so spent

from rent due or to become due hereunder. If Landlord's default is of such a nature that it cannot be cured within thirty (30) days, then Landlord's cure period shall be extended for a reasonable period of time provided Landlord commences the cure within thirty (30) days and thereafter actively and diligently in good faith proceeds with and continues the correction of the default until it shall be fully corrected.

2. If the Premises or any part thereof become subject to a first mortgage or a first deed of trust and Tenant is given written notice thereof, Tenant agrees that it will concurrently with the giving of any notice of default to Landlord, mail a duplicate of such notice to the original first mortgagee or to the original beneficiary of the first deed of trust. Tenant further agrees that it will give the original mortgagee or trust deed beneficiary the same rights to cure any default of Landlord as may be given Landlord under the terms of this Lease.

3. Anything contained in this Lease to the contrary notwithstanding, Tenant agrees that Tenant shall look solely to the estate of Landlord in the Center or the rents paid or payable to Landlord after Tenant's receipt of a judgment against Landlord (except for rent or expense offset rights under this Lease which have become effective prior to the same) for the collection of any judgment (or other judicial process) requiring the payment of money by Landlord in the event of any default or breach by Landlord with respect to any of the terms and provisions of this Lease to be observed or performed by Landlord, subject, however, to the rights of the holder of any Mortgage covering the Center and no other assets of Landlord, its members, partners, agents, employees, officers, or the employees or officers of any of its members or partners shall be subject to levy, execution or other judicial process for the satisfaction of Tenant's claim and Landlord shall not be liable for any such default or breach except to the extent of Landlord's estate in the Center. The term "Landlord" as used in this Lease, so far as covenants or obligations on the part of Landlord are concerned, shall be limited to mean and include only the owner or owners of the Shopping Center at the time in question and, in the event of any transfer or transfers of the title thereto, Landlord herein named (and in the case of any subsequent transfers or conveyances, the then grantor) shall be automatically released, from and after the date of such transfer or conveyance, of all liability as respects the performance of any covenants or obligations on the part of Landlord contained in this Lease thereafter to be performed.

XXX. REMEDIES CUMULATIVE

No remedy herein conferred upon or reserved to Landlord or Tenant shall exclude any other remedy herein or by law provided, but each shall be cumulative and in addition to every remedy given hereunder or now or hereafter existing at law or in equity or by statute.

XXXI. NOTICES

Any and all notices herein shall be hand delivered (which includes delivery by overnight courier) or, in the alternative, sent one copy by certified mail, return receipt requested, and one copy by regular mail, direct to Landlord at c/o Regency Realty Corporation, Suite 600, 1873 S.

Bellaire Street, Denver, Colorado 80222, Attn: Bill Woodward, with a copy to Regency Realty Corporation, Suite 400, 8141 Walnut Hill Lane, Dallas, Texas 75231, Attn: James G. Buis, and to Tenant at Dillon Companies, P. O. Box 5567, Denver, Colorado 80217, or 65 Tejon, Denver, Colorado 80217, Attention: Real Estate Director, with a copy to James J. Soran, III, Montgomery Little & McGrew, P.C., 5445 DTC Parkway, Suite 800, Englewood, Colorado 80111 or to such other address as may, from time to time, be directed in writing by the party who will receive said notice, and any notice sent by mail shall be deemed to have been received seventy-two (72) hours after the date and time deposited in the United States Post Office or upon receipt, whichever first occurs.

XXXII. MEMORANDUM OF LEASE

The parties hereto, shall execute and deliver a short form lease which shall carry the description of the Premises, the legal description of the Center, the length of the term and options, any expansion options, and the provisions of Article III above, and which shall incorporate by reference only the other provisions of this Lease. It is agreed by and between the parties that the short form lease as called for herein shall be recorded in the office of the Clerk and Recorder of the County of Laramie, State of Wyoming.

XXXIII. HAZARDOUS SUBSTANCES

1. Neither Tenant (for purposes of this Paragraph, Tenant shall include the employees and agents of Tenant) nor any assignee, sublessee, licensee or other person or entity acting at the direction or with the consent of Tenant shall (i) manufacture, treat, use improperly, store or dispose of any "Hazardous Substance" (as hereinafter defined) on the Premises, the Center or any part thereof, or (ii) permit the release of a Hazardous Substance on or from the Premises, the Center or any part thereof or (iii) permit the use of materials containing Hazardous Substances in connection with the construction of the expansion in violation of applicable Environmental Laws (as such term is defined herein). The term "Hazardous Substance" shall mean any waste, substance or material (a) identified in Section 101(14) of the Comprehensive Environmental Response, Compensation and Liability Act of 1980, as the same may be amended from time to time (herein called "CERCLA"), or (b) determined to be hazardous, toxic, a pollutant or contaminant, under any applicable federal, state or local statute, law, ordinance, rule, regulation or judicial or administrative order or decision, as same may be amended from time to time ("Environmental Laws"). Notwithstanding anything contained herein to the contrary, Tenant shall be entitled to use, store, sell or place in appropriate containers for pickup for disposal off-site (off the Center) of those items which otherwise would fall within the definition of Hazardous Substances set forth herein provided that such use, storage, disposition or sale is in accordance with all Environmental Laws and are those items which typically are used, stored or sold within retail stores. **TENANT SHALL AND DOES HEREBY INDEMNIFY LANDLORD FOR, DEFEND LANDLORD AGAINST AND SAVE LANDLORD HARMLESS FROM, ANY LIABILITY, LOSS, COST (INCLUDING, WITHOUT LIMITATION, REASONABLE ATTORNEYS' FEES AND EXPENSES ACTUALLY**

INCURRED WITHOUT REGARD FOR ANY STATUTORY PRESUMPTION), INJURY, DAMAGE OR OTHER EXPENSE WHATSOEVER THAT MAY OCCUR OR BE CLAIMED BY OR WITH RESPECT TO ANY PERSON(S) OR PROPERTY RESULTING FROM TENANT'S FAILURE TO COMPLY WITH THE ENVIRONMENTAL LAWS AND THE TERMS OF THIS PARAGRAPH AS A RESULT OF THE USE, STORAGE, DISPOSAL OR SALE OF ANY HAZARDOUS SUBSTANCES BY TENANT OR TENANT'S ASSIGNEES, SUBLESSEES, LICENSEES OR OTHER PERSONS ACTING AT THE DIRECTION OF TENANT OR WITH THE CONSENT OF TENANT. THE FOREGOING INDEMNITY EXCLUDES THE ACTS OR OMISSIONS OF LANDLORD, ITS AGENTS, EMPLOYEES OR ANY LIABILITY, LOSS, COST, INJURY, DAMAGE OR OTHER EXPENSES WHATSOEVER THAT MAY OCCUR AS A RESULT OF CONTRACTORS AND OF THIRD PERSONS.

2. Neither Landlord (for purposes of this Paragraph, Landlord shall include the employees, agents and contractors of Landlord) nor any assignee, tenant, licensee or other person or entity acting at the direction or with the consent of Landlord shall (i) manufacture, treat, use improperly, store or dispose of any Hazardous Substance on the Premises, the Center or any part thereof, or (ii) permit the release of a Hazardous Substance on or from the Premises, the Center or any part thereof or (iii) permit the use of materials containing Hazardous Substances in connection with the construction of Tenant's expansion or any other improvements within the Center. Notwithstanding anything contained herein to the contrary, Landlord and Landlord's tenants shall be entitled to use, store, sell or place in appropriate containers for pickup for disposal off-site (off the Center and any outlots) of those items which otherwise would fall within the definition of Hazardous Substances set forth herein provided that such use, storage, disposition or sale is in accordance with all Environmental Laws and are those items which typically are used, stored or sold within retail stores. **LANDLORD SHALL AND DOES HEREBY INDEMNIFY TENANT FOR, DEFEND TENANT AGAINST AND SAVE TENANT HARMLESS FROM, ANY LIABILITY, LOSS, COST (INCLUDING, WITHOUT LIMITATION, REASONABLE ATTORNEYS' FEES AND EXPENSES ACTUALLY INCURRED WITHOUT REGARD TO ANY STATUTORY PRESUMPTION), INJURY, DAMAGE OR OTHER EXPENSE WHATSOEVER THAT MAY OCCUR OR BE CLAIMED BY OR WITH RESPECT TO ANY PERSON(S) OR PROPERTY RESULTING FROM LANDLORD'S OR LANDLORD'S TENANT'S, FAILURE TO COMPLY WITH THE ENVIRONMENTAL LAWS AND THE TERMS OF THIS PARAGRAPH AS A RESULT OF THE USE, STORAGE, DISPOSAL, OR SALE OF ANY HAZARDOUS SUBSTANCES. THE FOREGOING INDEMNITY EXCLUDES ANY LIABILITY, LOSS, COST, INJURY, DAMAGE OR OTHER EXPENSES WHATSOEVER THAT MAY OCCUR AS A RESULT OF THE ACTS OR OMISSIONS OF TENANT, ITS AGENTS, EMPLOYEES, CONTRACTORS, ASSIGNEES, SUBLESSEES OR SUCCESSORS.**

3. During the term of this Lease, Landlord covenants and agrees to diligently conduct or cause to be conducted all reasonable investigations, studies, reporting, remediation

and other acts as may be required by any federal, state, or local authority charges with enforcing any Environmental Laws with respect to any Hazardous Substances or environmental conditions affecting the Premises and the Center and to furnish Tenant with complete information regarding same. **LANDLORD SHALL INDEMNIFY TENANT FOR, DEFEND TENANT AGAINST AND SAVE TENANT HARMLESS FROM ANY LIABILITY, LOSS, COST (INCLUDING, WITHOUT LIMITATION, REASONABLE ATTORNEYS' FEES AND EXPENSES ACTUALLY INCURRED WITHOUT REGARD TO STATUTORY PRESUMPTION), INJURY, DAMAGE OR OTHER EXPENSES WHATSOEVER THAT MAY OCCUR OR BE CLAIMED BY OR WITH RESPECT TO ANY PERSONS OR PROPERTY RESULTING FROM LANDLORD'S FAILURE TO COMPLY WITH THIS PARAGRAPH 3, EXCEPT WHERE SUCH LIABILITY, LOSS, COST, INJURY, DAMAGE OR OTHER EXPENSES RESULTS FROM THE ACTS OR OMISSIONS OF TENANT, ITS AGENTS, EMPLOYEES, CONTRACTORS, ASSIGNEES, SUBLESSEES OR SUCCESSORS.**

XXXIV. BINDING EFFECT

Each and every provision of this Lease shall bind and shall inure to the benefit of the successors and assigns of the respective parties hereto.

XXXV. CONSTRUCTION, COURTS AND JURISDICTION

1. It is agreed between the parties that this Lease was negotiated and drafted by the mutual efforts and endeavors of the parties, and that no construction of this Lease shall be made more favorable or more detrimental to either party as a result of the joint efforts of the parties to negotiate, draft, and prepare this document.

2. This Lease and all performance, construction, and interpretation hereof shall be governed by the laws of the State of Colorado.

XXXVI. PARAGRAPH HEADINGS

Article headings of this Lease are inserted only for reference and in no way define, limit, or describe the scope or intent of this Lease nor affect its terms and provisions.

XXXVII. ENTIRE AGREEMENT

The parties hereto declare that in entering into this Lease they relied solely upon the statements contained therein and fully understand that no agents or representatives have authority to in any manner change, add to, or detract from the terms of this Lease, which constitutes the entire agreement of the parties.

XXXVIII. AMENDMENT

This Lease may not be altered, changed, or amended, except by an instrument in writing signed by the parties hereto.

XXXIX. MULTIPLE COPIES

This Lease may be executed in any number of copies, each of which shall be deemed an original, and all of them shall constitute one and the same agreement.

XL. LEASE CERTIFICATES

Landlord agrees at any time, and from time to time, within thirty (30) days after written request, to execute, acknowledge and deliver to the Tenant a written instrument in recordable form certifying that this Lease is unmodified and in full force and effect, or if there have been modifications, that it is in full force and effect as modified and stating the modifications, and the dates to which rent and other charges have been paid, last paid, and paid in advance, if any, and stating whether or not the Tenant is in default in the performance of any covenant, agreement or conditions contained in this Lease and, if so, specifying each such default and stating that there are no defenses, setoffs, recoupments, claims or counterclaims of any nature by or on behalf of the Landlord against the Tenant, or if there are any such specifying each.

XLI. ATTORNEYS' FEES

In the event of any litigation arising out of this Lease or the interpretation of this Lease, the prevailing party shall be entitled to reasonable attorneys' fees and court costs.

XLII. FORCE MAJEURE

Whenever a period of time is herein provided for either party to do or perform any act or thing, there shall be excluded from the computation of such period of time any delays due to riots, acts of God, shortages of labor or any cause or causes, whether or not similar to those enumerated, beyond the parties' reasonable control or the reasonable control of their agents, servants, employees and any contractor engaged by them to perform work in connection with this Lease.

XLIII. TENANT'S EXPANSION

INTENTIONALLY DELETED.

XLIV. LEASE CONDITIONS

INTENTIONALLY DELETED.

IN WITNESS WHEREOF, the parties have caused their hands, by appropriate corporate representatives, to be placed upon this document as of the day and year first above provided.

Landlord:

R&KS DELL RANGE DEVELOPMENT, LLC,
a Wyoming limited liability company

By: R&M Western Partnership, L.P., as manager

By: Regency Realty Group, Inc., a Florida
corporation, general partner

By:

Title:

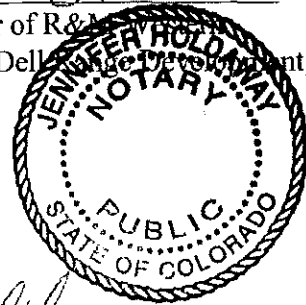
[Signature]
Assistant Vice President

STATE OF Colorado)
) ss.
COUNTY OF Denver)

The foregoing instrument was acknowledged before me this 1 day of December, 2000, by William Woodward as VP for Regency Realty Group, Inc., a Florida corporation, the general partner of R&M Western Partnership, L.P., a Delaware limited partnership, manager of R&KS Dell Range Development, LLC, a Wyoming limited liability company.

WITNESS my hand and official seal.

My commission expires: 7/17/2004



[Signature]
Notary Public

Tenant:

DILLON COMPANIES, INC., d/b/a
KING SOOPERS, a Kansas corporation

By:

Title: President

STATE OF Colorado)
COUNTY OF Denver) ss.

The foregoing instrument was acknowledged before me this 30th day of November, 2000, by E. John Bergonas President for Dillon Companies, Inc., d/b/a King Soopers, a Kansas corporation.

WITNESS my hand and official seal.

My commission expires: March 6, 2001

John B. Williams
Notary Public

LEASE MODIFICATION AGREEMENT
(Store #79)

This Lease Modification Agreement ("Lease Modification Agreement") is entered into effective the 1st day of March, 2002, between R&KS DELL RANGE DEVELOPMENT, L.L.C, a Wyoming limited liability company ("LANDLORD"), and DILLON COMPANIES, INC., d/b/a KING SOOPERS, a Kansas corporation, ("TENANT").

WHEREAS, Landlord and Tenant entered into a lease dated December 1, 2000 (the "Lease"), for property located at Ridge Road and Dell Range Boulevard, City of Cheyenne, County of Laramie, State of Wyoming.

WHEREAS, Article IV, Term of the Lease provides that the parties execute an Amendment to Lease after the Commencement Date (as defined in the Lease).

NOW, THEREFORE, for and in consideration of One Dollar (\$1.00) and other good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, and the promises and undertakings hereinafter set forth, the parties hereto agree that such Lease shall be and is hereby amended and modified as follows:

1. **Commencement Date.** The Commencement Date of the Lease was December 6, 2000.
2. **Termination Date.** The date on which the original term of the Lease expires is December 5, 2020.
3. **Square Footage.** The total ground floor square footage of the Premises is 60,168 square feet excluding a 888 square foot equipment room. The total square footage for the entire Center is 86,883 square feet.
4. **Store Base Rent.** Commencing May 1, 2002, Store Base Rent shall be amended from \$1.00 per square foot to \$1.50 per square foot. Store Base Rent is payable on the first day of each month in equal monthly installments. Store Base Rent is in the annual amount of \$18,000.00.
5. **Authority.** Landlord and Tenant warrant to each other that they each have full and complete authority to enter into this Lease Modification Agreement.
6. **Other Terms.** All other terms and conditions of the Lease not specifically modified by this Lease Modification Agreement shall remain in full force and effect.
7. **Counterparts.** This Lease Modification Agreement may be executed in counterparts which when taken together shall constitute one document.

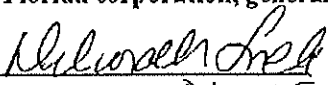
IN WITNESS WHEREOF, the parties have executed this Lease Modification Agreement the day and year first written above.

LANDLORD:

**R&KS DEER RANGE DEVELOPMENT, LLC,
A Wyoming Limited Liability Company**

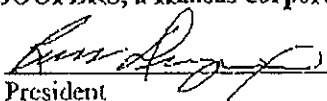
By: R&M Western Partnership, L.P.,
Manager

By: Regency Realty Group, Inc., a
Florida corporation, general partner

By: 
Title: VP Deborah Froeb

TENANT:

**DILLON COMPANIES, INC., d/b/a
KING SOOPERS, a Kansas corporation**

By: 
Title: President

SECOND LEASE MODIFICATION AGREEMENT

(Store #79)

This Second Lease Modification Agreement ("Second Lease Modification Agreement") is entered into effective the 20 day of July, 2005, between DELL RANGE VENTURE, LLC, a Delaware limited liability company, as successor in interest to R&KS DELL RANGE DEVELOPMENT, LLC, a Wyoming limited liability company ("LANDLORD"), and DILLON COMPANIES, INC., d/b/a KING SOOPERS, a Kansas corporation, ("TENANT").

WHEREAS, Landlord and Tenant entered into a lease dated December 1, 2000, as amended by a Lease Modification Agreement dated March 1, 2002 (collectively the "Lease"), for property located at Ridge Road and Dell Range Boulevard, City of Cheyenne, County of Laramie, State of Wyoming;

WHEREAS, Paragraph 4 of the Lease Modification Agreement incorrectly states the amount of Store Base Rent.

NOW, THEREFORE, for and in consideration of One Dollar (\$1.00) and other good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, and the promises and undertakings hereinafter set forth, the parties hereto agree that such Lease shall be and is hereby amended and modified as follows:

1. **Store Base Rent.** Store Base Rent was amended from _____ per square foot to _____ per square foot in the Lease Modification Agreement. Store Base Rent is payable on the first day of each month in equal monthly installments. Store Base Rent is in the amount of _____.
2. **Authority.** Landlord and Tenant warrant to each other that they each have full and complete authority to enter into this Second Lease Modification Agreement.
3. **Other Terms.** All other terms and conditions of the Lease not specifically modified by this Second Lease Modification Agreement shall remain in full force and effect.
4. **Counterparts.** This Second Lease Modification Agreement may be executed in counterparts which when taken together shall constitute one document.

IN WITNESS WHEREOF, the parties have executed this Second Lease Modification Agreement the day and year first written above.

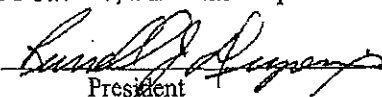
LANDLORD:

DELL RANGE DEVELOPMENT, LLC,
A Delaware Limited Liability Company

By: _____
Title: _____

TENANT:

DILLON COMPANIES, INC., d/b/a
KING SOOPERS, a Kansas corporation

By: 
Title: _____ President

SECOND LEASE MODIFICATION AGREEMENT**(Store #79)**

This Second Lease Modification Agreement ("Second Lease Modification Agreement") is entered into effective the 20 day of July, 2005, between DELL RANGE VENTURE, LLC, a Delaware limited liability company, as successor in interest to R&KS DELL RANGE DEVELOPMENT, LLC, a Wyoming limited liability company ("LANDLORD"), and DILLON COMPANIES, INC., d/b/a KING SOOPERS, a Kansas corporation, ("TENANT").

WHEREAS, Landlord and Tenant entered into a lease dated December 1, 2000, as amended by a Lease Modification Agreement dated March 1, 2002 (collectively the "Lease"), for property located at Ridge Road and Dell Range Boulevard, City of Cheyenne, County of Laramie, State of Wyoming.

WHEREAS, Paragraph 4 of the Lease Modification Agreement incorrectly states the amount of Store Base Rent.

NOW, THEREFORE, for and in consideration of One Dollar (\$1.00) and other good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, and the promises and undertakings hereinafter set forth, the parties hereto agree that such Lease shall be and is hereby amended and modified as follows:

1. **Store Base Rent.** Store Base Rent was amended from _____ per square foot to _____ square foot in the Lease Modification Agreement. Store Base Rent is payable on the first day of each month in equal monthly installments. Store Base Rent is in the amount of _____.
2. **Authority.** Landlord and Tenant warrant to each other that they each have full and complete authority to enter into this Second Lease Modification Agreement.
3. **Other Terms.** All other terms and conditions of the Lease not specifically modified by this Second Lease Modification Agreement shall remain in full force and effect.
4. **Counterparts.** This Second Lease Modification Agreement may be executed in counterparts which when taken together shall constitute one document.

IN WITNESS WHEREOF, the parties have executed this Second Lease Modification Agreement the day and year first written above.

LANDLORD:

DELL RANGE ^{VENTURE} DEVELOPMENT, LLC,
A Delaware Limited Liability Company

By: Jurrius [Signature] Group, LLC, Manager

By: _____

Title: John Jurrius, Managing Member

TENANT:

DILLON COMPANIES, INC., d/b/a
KING SOOPERS, a Kansas corporation

By: _____

Title: _____ President

THIRD LEASE MODIFICATION AGREEMENT

THIS THIRD LEASE MODIFICATION AGREEMENT ("Third Modification Agreement") made and entered into this 26th day of October, 2006, by and between CLWA Dell Range Venture, LLC., a Utah limited liability company (hereinafter "Landlord"), and Dillon Companies, Inc., a Kansas corporation dba King Soopers (hereinafter "Tenant")

RECITALS

- A. Landlord's predecessor in-interest and Tenant entered into certain lease dated December 1, 2000, amended by Lease Modification Agreement dated March 1, 2002, and Second Lease Modification Agreement dated July 20, 2005; (collectively, the "Lease") for the premises described in the lease located at 3702 Dell Range Boulevard, Cheyenne, WY 82009 ("Premises").
- B. Landlord and Tenant desire to further amend the Lease.

NOW, THEREFORE, Landlord and Tenant hereby agree as follows:

1. Landlord releases its right to seek additional payment from Tenant and Tenant releases its reconciliation rights with respect to Article XI. Maintenance and Article XII. Taxes for the following:

2002, 2003, 2004 and 2005 Common Area Maintenance Reconciliation
2004 Real Property Taxes

Landlord hereby agrees to accept, as payment in full, all Common Area Maintenance payments and Real Estate Taxes payments submitted by Tenant, if any, for the time periods recited above.
2. Tenant releases its right to demand reconciliation and back-up documentation for Common Area Maintenance and Real Estate Taxes for the time periods recited in Section above.
3. Successors and Assigns. This Third Modification Agreement shall inure to the benefit of both Landlord and Tenant, and their respective successor and assigns.
4. Counterparts. This Third Modification Agreement may be executed in counterparts, which when combined shall constitute fully executed originals.
5. Except as specifically modified hereby, the Lease remains in full force and effect. All references herein and in the Lease to the "Lease" shall mean, unless the context clearly indicates to the contrary, the Lease as amended by this Third Modification Agreement. Defined terms used herein shall have the meaning set forth in the Lease, unless a contrary meaning is contained in this Third Modification Agreement.

IN WITNESS WHEREOF, Landlord and Tenant have executed this Third Modification Agreement as of the date set forth above.

Landlord:

CLWA Dell Range Ventures, LLC,
a Delaware limited liability company

By its Manager:

Elisabeth A. Fowler, as Trustee of The CLWA QTip Trust

By: Elisabeth A. Fowler
Elisabeth A. Fowler, Trustee

Tenant:

DILLON COMPANIES, INC., a Kansas corporation
dba King Soopers

By: Scott M. Henderson
~~Russ Disponse~~ Scott M. Henderson
Title: Vice President



Assignment and Assumption of Leases

COPY

THIS ASSIGNMENT AND ASSUMPTION OF LEASES (this "Assignment") dated as of October 31, 2006, is between CLWA Dell Range Ventures, LLC, a Delaware limited liability company ("Assignor") and 4-S-R Dell Range Marketplace, LLC, a limited liability company ("Assignee").

WHEREAS, Assignor is the lessor under certain leases executed with respect to the Property (as defined below), which leases are described in Schedule I attached hereto (the "Leases");

WHEREAS, Assignor and Synergy Development, LLC, whose interests in the Agreement was subsequently assigned to Assignee, have entered into that certain Purchase and Sale Agreement and Joint Escrow Instructions dated effective as of September 5, 2006 (the "Agreement"), pursuant to which Assignee agreed to purchase the real property and improvements described therein (the "Property") from Assignor and Assignor agreed to sell the Property to Assignee, on the terms and conditions contained therein.

WHEREAS, Pursuant to the Agreement, Assignor desires to assign its interest as landlord under the Leases to Assignee, and Assignee desires to accept the assignment thereof, on the terms and conditions set forth below.

Now Therefore, the parties hereto agree as follows:

1. As of the date on which the Property is conveyed to Assignee pursuant to the Agreement (the "Conveyance Date"), Assignor hereby assigns to Assignee all of its right, title and interest in and to the Leases;
2. Assignor hereby agrees to indemnify Assignee against and hold Assignee harmless from any and all liabilities, losses, claims, damages, costs or expenses, including, without limitation, reasonable attorneys' fees and costs (collectively, the "Claims"), originating prior to the Conveyance Date and arising out of the Assignor's obligations under the Leases.
3. As of the Conveyance Date, Assignee hereby assumes all of Assignor's obligations under the Leases and agrees to indemnify Assignor against and hold Assignor harmless from any and all Claims originating on or subsequent to the Conveyance Date and arising out of the Assignee's obligations under the Leases, as assumed hereunder.
4. In the event of any dispute between Assignor and Assignee arising out of the obligations of the parties under this Assignment or concerning the meaning or interpretation of any provision contained herein, the losing party shall pay the prevailing party's costs and expenses of such dispute, including, without limitation, reasonable attorneys' fees and costs.
5. This Assignment shall be binding on and inure to the benefit of the parties hereto and their respective successors and assigns.

6. This Assignment may be executed in any number of counterparts, each of which shall be deemed an original, and all of which taken together shall constitute one and the same instrument.

7. Assignor covenants and agrees to reasonably cooperate with Assignee upon Assignee's request in making any claim or bringing any action under or on account of the Leases; provided, however, that there will be no cost to Assignor for doing so.

8. This Assignment shall be governed by and construed in accordance with the laws of the State of Wyoming.

Assignor and Assignee have executed this Agreement as of the day and year first written above.

ASSIGNOR:

CLWA Dell Range Ventures, LLC,
a Delaware limited liability company

By its Manager:

Elisabeth A. Fowler, as Trustee of The CLWA
QTip Trust

By: Elisabeth A. Fowler
Elisabeth A. Fowler, Trustee

ASSIGNEE:

4-S-R DELL RANGE MARKETPLACE, LLC,
a Utah limited liability company

By: 4-S-R DELL RANGE MARKETPLACE
MANAGEMENT, INC., a Utah corporation

Its: Managing Member

By: _____
Steven P. Urry

Its: President

6. This Assignment may be executed in any number of counterparts, each of which shall be deemed an original, and all of which taken together shall constitute one and the same instrument.

7. Assignor covenants and agrees to reasonably cooperate with Assignee upon Assignee's request in making any claim or bringing any action under or on account of the Leases; provided, however, that there will be no cost to Assignor for doing so.

8. This Assignment shall be governed by and construed in accordance with the laws of the State of Wyoming.

Assignor and Assignee have executed this Agreement as of the day and year first written above.

ASSIGNOR:

CLWA Dell Range Ventures, LLC,
a Delaware limited liability company

By its Manager:

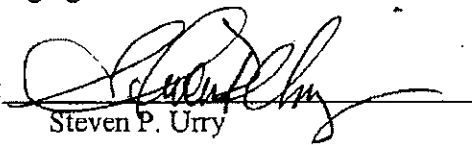
Elisabeth A. Fowler, as Trustee of The CLWA
QTip Trust

By: _____
Elisabeth A. Fowler, Trustee

ASSIGNEE:

4-S-R DELL RANGE MARKETPLACE, LLC,
a Utah limited liability company

By: 4-S-R DELL RANGE MARKETPLACE
MANAGEMENT, INC., a Utah corporation
Its: Managing Member

By: 
Steven P. Urry
Its: President

LEASE MODIFICATION AGREEMENT NO. 4

THIS LEASE MODIFICATION AGREEMENT NO. 4 (this "**LMA**") is effective as of January 14, 2022, 2022 (the "**Effective Date**"), by and between DELL RANGE RETAIL CENTER LLC, a Delaware limited liability company ("**Landlord**"), and DILLON COMPANIES, LLC, a Kansas limited liability company ("**Tenant**") f/k/a Dillon Companies, Inc., a Kansas corporation.

RECITALS

A. Landlord, as successor in interest to R&KS Dell Range Development, LLC, a Wyoming limited liability company through mesne assignments, and Tenant are parties to that certain Lease Agreement dated December 1, 2000 as modified by that certain (i) Lease Modification Agreement dated March 1, 2002, (ii) that certain Second Lease Modification Agreement dated July 20, 2005, and (iii) that certain Third Lease Modification Agreement dated October 26, 2006 (collectively, the "**Lease**" and, as amended by this LMA, the "**Amended Lease**"), by which Landlord leases to Tenant certain premises located at 3702 Dell Range Boulevard, Cheyenne, Wyoming 82009 (the "**Premises**"). A Memorandum of the Lease was recorded August 15, 2002 in Book 1665 at Page 1377 of the official records of Laramie County, Wyoming (the "**Memorandum**").

B. The Premises are a part of the shopping center located in the City of Cheyenne, County of Laramie, State of Wyoming (the "**Center**") commonly known as Dell Range Marketplace and legally described as Lots 1, 2, 3, 4, 5, 6, 7 and 8 of Dell Range Marketplace, Second Filing, according to the official plat filed for record in Plat Cabinet 7, Slot 140, Laramie County, State of Wyoming. Landlord is the owner of Lots 4, 5 and 6 of the Center.

C. Landlord and Tenant desire to amend the Lease to incorporate additional square footage into the Premises, and to make other modifications to the term and conditions of the Lease as set forth in this LMA.

NOW THEREFORE, for and in consideration of \$10.00 and other good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, and of the promises and undertakings hereinafter set forth, the parties agree that the Lease shall be and is hereby amended and modified as follows:

1. Capitalized Terms and Recitals. Capitalized terms not otherwise defined herein shall have the meanings ascribed to them in the Lease. The aforementioned Recitals are hereby incorporated into this LMA as if fully rewritten herein.

2. Modification of Term. As of the Effective Date of this LMA, the term of the Lease for the Expanded Premises (defined herein) shall be extended through December 5, 2030. Notwithstanding anything in the Lease to the contrary, as of the Effective Date of this LMA, Tenant shall have six (6) five-year options to extend the term of the Lease for the Expanded Premises (each an "**Option**" and each five-year term an "**Option Term**"), each commencing on December 6 and ending on December 5 of the fifth calendar year thereafter. All Options shall be exercised at the time and in the manner set forth in Article V of the Lease.

3. Expansion of Premises. Upon the expiration of the Feasibility Period defined in Section 6 hereinbelow, Landlord shall deliver to Tenant possession of those certain premises commonly known as Suites B1 through B6 of 3806 Dell Range Boulevard, Cheyenne, Wyoming (the "**Additional Space**"). The Additional Space shall be delivered in its "as is" condition, free and clear of all leases, tenants, licensees, or occupants. The Additional Space contains approximately 8,467 square feet of building area. The Premises and the Additional Space (collectively, the "**Expanded Premises**") are depicted on the Expanded Premises Site Plan attached hereto as Exhibit A and made a part hereof by this reference.

4. Expanded Premises. As of the Effective Date of this LMA, all references under the Lease to "Premises" shall mean the Expanded Premises, except where this LMA make a distinction between Premises, the Additional Space, and Expanded Premises, such as in the payment of rental as set forth herein.

5. Use of Expanded Premises. Notwithstanding anything contained in the Lease to the contrary, Landlord acknowledges and agrees that Tenant is permitted to sell alcoholic beverages, malt beverages, and any other alcohol or liquors permitted to be sold pursuant to a Wyoming retail liquor license in the Expanded Premises.

6. Feasibility Study. Tenant shall have ninety (90) days following the Effective Date of this LMA (the "**Feasibility Period**") to conduct such due diligence regarding the viability of the acquisition of the Additional Space as it requires. Such due diligence may include seeking internal capital committee approval from Tenant's senior management and Tenant's parent company, The Kroger Co., an Ohio corporation, and obtaining all approvals and licenses necessary for the operation of a retail liquor store from the governing municipality and other governmental entities having jurisdiction over the Additional Space. Tenant may, in its sole and absolute discretion, terminate the Feasibility Period early by written notice to Landlord in which case the date of termination of the Feasibility Period shall, for all purposes hereunder, be the date of receipt of such notice by Landlord.

Notwithstanding anything contained in the Lease or this LMA to the contrary, Tenant shall have the right to terminate this LMA for any reason upon written notice to Landlord at any time prior to the expiration of the Feasibility Period. If this LMA is terminated by Tenant as permitted herein, the parties acknowledge and agree that (i) except as provided in clause (ii) of this paragraph, the Lease shall continue in full force and effect as if this LMA had never been executed by the parties, and (ii) Section 11 of this LMA shall not be terminated and shall continue in full force and effect notwithstanding an election by Tenant to terminate this LMA in accordance with the terms of this Section 6.

Additionally, the parties acknowledge that Dell Range Liquor shall have the right to continue to operate its business in Spaces B3 thru B6 (being a part of the Additional Space and referred to hereinafter as "**B3-B6**") during the Feasibility Period as tenant under its existing lease with Landlord (the "**DRL Lease**"). Landlord acknowledges that it has been advised by Tenant that Tenant is a party to an agreement to acquire the liquor license from Dell Range Liquor (the "**DRL Purchase Agreement**"). If Tenant does not terminate this LMA as provided herein, Tenant shall, on or before the last day of the Feasibility Period (i) consummate its purchase under the DRL Purchase Agreement,

(ii) cause Dell Range Liquor to close its doors for business to the public in B3-B6 and (iii) cause Dell Range Liquor to deliver possession of B3-B6 to Landlord, such delivery to be deemed to constitute a termination of the DRL Lease for all purposes. Landlord shall deliver possession of the Additional Space to Tenant on the next Business Day (as defined in Section 12 below) following the last to occur of the matters described in clauses (i) through (iii) above.

7. Rental.

(a) Rental for Additional Space. Provided Tenant has not terminated this LMA by written notice to Landlord as provided in Section 6 above, commencing with the calendar day next following the expiration of the Feasibility Period (the "**Rent Commencement Date**") and continuing through December 5, 2025, the annual Store Base Rent for the Additional Space shall be [REDACTED] per square foot] payable in twelve (12) equal monthly installments of [REDACTED] on the first day of each calendar month. The annual Store Base Rent for the Additional Space for the period commencing December 6, 2025 and continuing through December 5, 2030 shall be [REDACTED] payable in twelve (12) equal monthly installments of [REDACTED] on the first day of each calendar month. Store Base Rent for any partial month during the term of the Lease shall be prorated by dividing the Store Base Rent for such partial month by the number of calendar day in such month and multiplying the daily Store Base Rent by the number of days during which the Lease was in effect.

Set forth below for each Option Term is the annual Store Base Rent and the monthly installment of the Store Base Rent for the Additional Space for such Option Term. The Store Base Rent shall be payable in equal monthly installments on the first day of each calendar month during the Option Term as set forth below:

	<u>Annual Store Base Rent for Additional Space</u>	<u>Monthly Installment</u>
First Option Term	[REDACTED]	[REDACTED]
Second Option Term	[REDACTED]	[REDACTED]
Third Option Term	[REDACTED]	[REDACTED]
Fourth Option Term	[REDACTED]	[REDACTED]
Fifth Option Term	[REDACTED]	[REDACTED]
Sixth Option Term	[REDACTED]	[REDACTED]

(b) Rental for the Premises. For avoidance of doubt, the monthly Store Base Rental for the Premises in the amount of [REDACTED] annually per Second Lease Modification Agreement) for the Lease Term and for all Option Terms shall remain unchanged by this LMA. Tenant shall pay Landlord all Store Base Rent and all other amounts due under the Lease in addition to any amounts payable hereunder on account of Store Base Rental and expense reimbursements for the Additional Space.

8. NNN Lease for Additional Space. The Additional Space is being leased to Tenant on a "net, net, net" basis with the Tenant responsible for all costs as though the Additional Space were leased in a separate shop space lease. Accordingly, the Additional Space shall be subject to and governed by the provisions of Exhibit C attached hereto and incorporated herein by this reference.

9. Tenant Improvements. Tenant may cause the Expanded Premises and the Premises to be connected internally via an opening between the two premises, as permitted by governmental authorities having jurisdiction. As this will be a structural modification to Landlord's building(s), Landlord shall have the right to approve Tenant's plans and specifications for such pass-through, which approval shall not be unreasonably withheld, conditioned, or delayed, and shall be deemed given if written objections to Tenant's plans and specifications are not received by Tenant within thirty (30) days after Tenant submitted its plans and specifications for the pass-through to Landlord for review. Notwithstanding anything contained in the Lease or this LMA to the contrary, at the expiration or earlier termination of the Term of the Lease, Tenant shall have no obligation to seal up the pass-through, and Landlord shall accept the same in its "as is", "where is", and "with all faults" condition.

10. Estoppel Certificate or Subordination, Non-Disturbance and Attornment Agreement. Any request by Landlord for an estoppel certificate or a subordination, non-disturbance and attornment agreement pursuant to the Lease is to be submitted via online forms available at www.krogerrealestate.com under the "Landlord" button.

11. Restrictive Covenants and Easements. The first and last sentences of Paragraph 5 of Article III of the Lease are hereby deleted and the words "for office use not ancillary to a retail business" are hereby deleted from Paragraph 6 of Article III of the Lease. Such changes are intended to permit space in the Center to be leased to restaurants or office users without the prior written consent of Tenant. For avoidance of doubt, the use restrictions set forth in Article III of the Lease which benefit the Expanded Premises, and which burden the Center, shall no longer burden the Additional Space, as the Additional Space is part of the Expanded Premises for all purposes under Article III of the Lease.

12. Notices. All notices, requests, demands, and other communications required or permitted to be given under this LMA and the Amended Lease shall be given in writing (at the addresses set forth below) by any of the following means: (i) personal service; (ii) electronic mail or an attachment to electronic mail in Adobe Systems, Inc. Portable Document Format (PDF) or other similar electronic file; (iii) delivery by any reputable overnight courier service; or (iv) registered or certified mail, postage prepaid, return receipt requested. Any notice, demand or request sent pursuant to either (i) or (ii) hereof shall be deemed received upon such personal service or upon dispatch by electronic means and if sent pursuant to (iii) hereof shall be deemed received one (1) Business Day following delivery to such courier service and if sent pursuant to (iv) hereof shall be deemed received five (5) Business Days after having been deposited in any post office or mail depository regularly maintained by the U.S. Postal Service.

If to Tenant:

Dillon Companies, LLC
c/o The Kroger Co.
1014 Vine Street
Cincinnati, Ohio 45202
Attn: Real Estate Shared Services (KS-079)
Email: don.forrest@kroger.com

With a copy to:

Dillon Companies, LLC
c/o The Kroger Co.
1014 Vine Street
Cincinnati, Ohio 45202
Attn: Jennifer K. Gothard
Law Department (KS-079)
Email: jennifer.gothard@kroger.com

If to Landlord:

Dell Range Retail Center LLC
c/o CNA Enterprises, Inc.
1901 Avenue of the Stars, Suite 855
Los Angeles, California 90067
Attn: L. Sloan, Vice President
Email: LSloan@cnaenterprises.com

With a copy to:

Norman D. Sloan, Esq.
Gipson Hoffman & Pancione
1901 Avenue of the Stars, Suite 1100
Los Angeles, California 90067-6002
Email: nds@ndspc.com

Such addresses may be changed by notice to the other parties given in the same manner as provided above. Notice for any party may be given by its counsel. For purposes of this LMA, the term "**Business Day**" shall mean a day other than a Saturday or Sunday, on which commercial banks are open for business in Cheyenne, Wyoming.

13. Brokers. Tenant and Landlord hereby represent to one another that each has not dealt with any broker in connection with this LMA other than Joe Cooley of Mountain West Commercial as locally licensed agent and Crosbie Real Estate Group, LLC, which represents Tenant (collectively, "**Tenant's Broker**"). Tenant's Broker shall be compensated by Landlord pursuant to a separate agreement. Tenant and Landlord hereby indemnify and hold the other party harmless from any and all losses, liability, costs, and/or expenses (including reasonable attorneys' fees) incurred as a result of an alleged breach of the foregoing representation.

14. First Amendment to Memorandum of Lease Agreement. If Tenant does not terminate this LMA during the Feasibility Period as permitted in Section 6 hereof, then within thirty (30) days after the expiration or earlier termination of the Feasibility Period, Landlord and Tenant shall promptly execute and cross-deliver that certain First Amendment to Memorandum of Lease Agreement in the form of Exhibit B attached hereto and made a part hereof by this reference which, when placed of record at Tenant's cost, will provide notice of Tenant's lease of the Expanded Premises, the extension of the term of the Lease, and the replacement of the Options.

15. Miscellaneous Provisions.

(a) Effect of LMA; Conflicts. Except as amended by this LMA, the Lease shall remain in full force and effect. Nothing herein shall impair the validity, enforceability, or priority of the Lease or the rights of Tenant thereunder. In the event of any inconsistency between the terms of the Lease and the terms of this LMA, the terms of this LMA shall prevail and control.

(b) Counterparts/Electronic Signature. This LMA may be signed in multiple counterparts which, when signed by all parties, shall constitute a binding agreement. The parties may sign this LMA via electronic digital signature (i.e., pdf, DocuSign, HelloSign, Coupa or similar electronic signature technology), and the parties may rely on such electronic digital signatures as if they are original signatures by each party or duly authorized representatives of each party.

(c) No Unwritten Agreements. There are no unwritten agreements respecting the matters set forth in the Lease or this LMA.

(d) Further Assurances. The parties agree to promptly sign all documents reasonably required to give effect to the provisions of this LMA.

(e) Severability. If any one or more of the provisions contained herein shall, for any reason, be held to be invalid, illegal, or unenforceable in any respect, such invalidity, illegality, or unenforceability shall not affect any other provision of this LMA, but this LMA shall be construed as if such invalid, illegal, or unenforceable provision had not been contained herein.

(f) Legal Advice. Each party has received independent legal advice from its attorneys with respect to the advisability of executing this LMA and the meaning of the provisions hereof, or, upon its own decision, declined to engage legal counsel. The provisions of this LMA shall be construed as to the fair meaning and not for or against any party based upon any attribution of such party as the sole source of the language in question.

(g) Consents. Landlord and Tenant each represent and warrant to the other that each respective party has the full right, legal power, and actual authority to enter into this LMA, and has obtained the consent of any and all persons, firms, or entities, including lenders, as is required to enter into this LMA.

(h) Successors and Assigns. The provisions of this LMA shall bind and inure to the benefit of the parties hereto, their successors and assigns.

(i) Choice of Law. This LMA shall be governed by the laws of the State of Wyoming.

(j) Authority. Each person whose signature is affixed hereto represents and warrants that such person is authorized to execute this LMA on behalf of and to bind the entity on whose behalf such person's signature is affixed.

IN WITNESS WHEREOF, this Lease Modification Agreement No. 4 has been executed as of the Effective Date.

[SIGNATURE PAGE FOLLOWS IMMEDIATELY]

LANDLORD:

DELL RANGE RETAIL CENTER LLC,
a Delaware limited liability company

By: CNA Enterprises, Inc.,
a California corporation,
Its Manager

By: LAWRENCE D. SLOAN
Name: LAWRENCE D. SLOAN
Title: Vice President

TENANT:

DILLON COMPANIES, LLC,
a Kansas limited liability company

By: 
Name: Rick J. Landrum
Title: Vice President

EXHIBIT A

Expanded Premises Site Plan

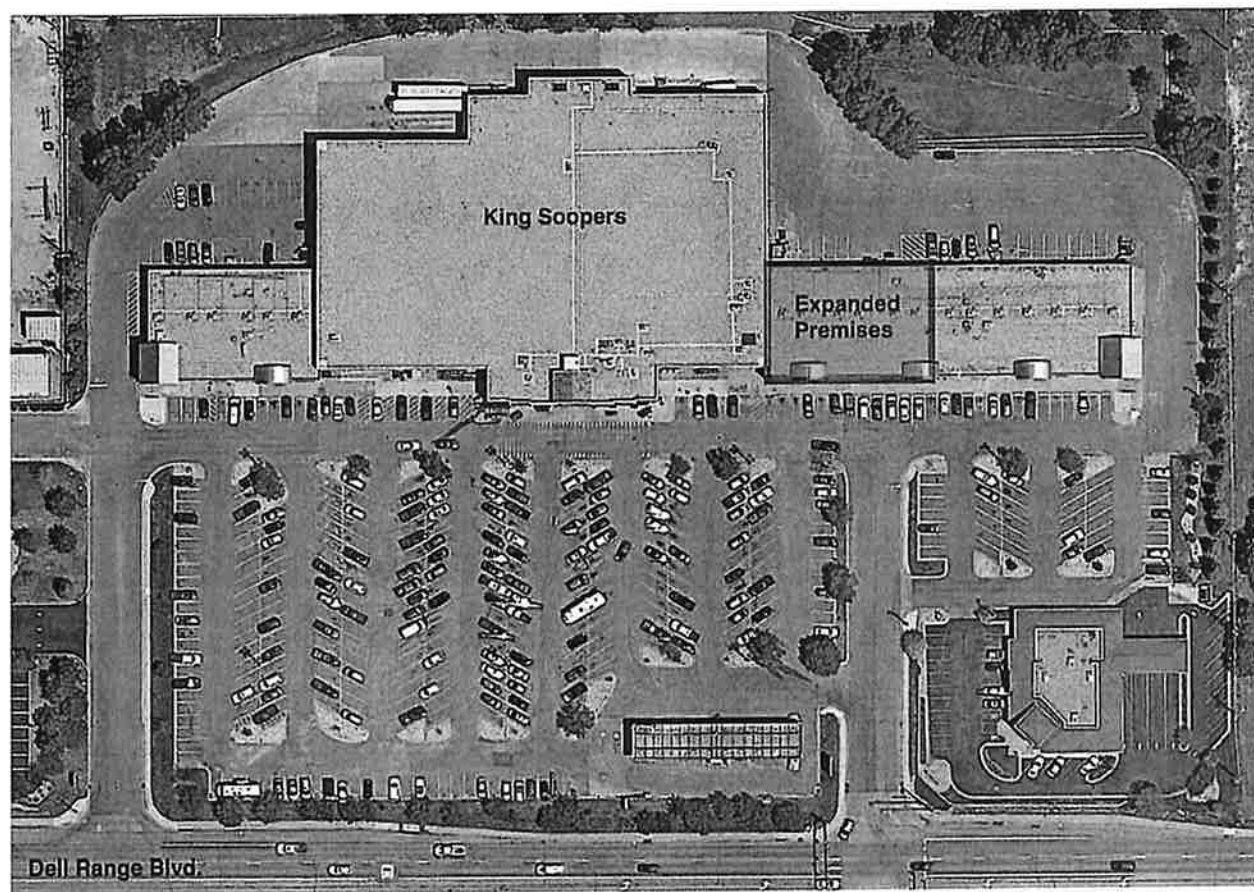


EXHIBIT B

First Amendment to Memorandum of Lease Agreement

This Instrument Prepared By and
After Recording, Please Return to:

Jennifer K. Gothard
Senior Attorney
Dillon Companies, LLC
c/o The Kroger Co.
1014 Vine Street
Cincinnati, Ohio 45202

Above Area for Clerk's Use

FIRST AMENDMENT TO MEMORANDUM OF LEASE AGREEMENT

THIS FIRST AMENDMENT TO MEMORANDUM OF LEASE AGREEMENT (this "**Amendment**") is effective as of _____, 2022 (the "**Effective Date**"), by and between DELL RANGE RETAIL CENTER LLC, a Delaware limited liability company ("**Landlord**"), and DILLON COMPANIES, LLC, a Kansas limited liability company ("**Tenant**") f/k/a Dillon Companies, Inc., a Kansas corporation.

RECITALS

D. Landlord, as successor in interest to R&KS Dell Range Development, LLC, a Wyoming limited liability company through mesne assignments, and Tenant are parties to that certain Memorandum of Lease Agreement and Lease Agreement both dated December 1, 2000, thereafter modified by that certain Lease Modification Agreement dated March 1, 2002, that certain Second Lease Modification Agreement dated July 20, 2005, that certain Third Lease Modification Agreement dated October 26, 2006, and that certain Lease Modification Agreement No. 4 dated _____, 2022 (collectively, the "**Lease**"), by which Landlord leases to Tenant certain premises located at 3702 and 3806 Dell Range Boulevard, Cheyenne, Wyoming 82009 (the "**Premises**").

E. The Premises are a part of a shopping center located in the City of Cheyenne, County of Laramie, State of Wyoming, as more particularly described in Exhibit A attached hereto and made a part hereof by this reference (the "**Center**").

A. Notice is hereby given of certain provisions of the Lease.

NOW THEREFORE, the parties agree that certain provisions of the Lease should be placed of record serving as notice to all interested third parties, as follows:

1. Capitalized Terms and Recitals. Capitalized terms not otherwise defined herein shall have the meanings ascribed to them in the Lease. The aforementioned Recitals are hereby incorporated into this Amendment as if fully rewritten herein.

2. Modification of Term. The term of the Lease is extended through December 5, 2030. Tenant shall have six (6) options to extend the term of the Lease (each an "**Option**"), each Option Term to be for a period of five (5) years. All Options shall be exercised at the time and in the manner set forth in Article V of the Lease. All previously granted but unexercised Options set forth in the Lease are null and void as of the Effective Date of this Amendment.

3. Expansion of Premises. On _____, 2022, Landlord delivered to Tenant possession of those certain premises commonly known as Suites B1 through B6 of 3806 Dell Range Boulevard, Cheyenne, Wyoming (the "**Additional Space**"). The Additional Space contains approximately 8,467 square feet of building area. The Premises and the Additional Space (collectively, the "**Expanded Premises**") are depicted on the Expanded Premises Site Plan attached hereto as Exhibit A and made a part hereof by this reference.

4. Premises. As of the Effective Date of this Amendment, all references under the Lease to "**Premises**" shall mean the Expanded Premises, except where this Amendment makes a distinction between the Premises and the Expanded Premises.

5. Restrictive Covenants and Easements. The first and last sentences of Paragraph 5 of Article III of the Lease are hereby deleted and the words "for office use not ancillary to a retail business" are hereby deleted from Paragraph 6 of Article III of the Lease. Such changes are intended to permit space in the Center to be leased to restaurants or office users without the prior written consent of Tenant.

6. Miscellaneous Provisions.

(a) Counterparts. This Amendment may be signed in multiple counterparts which, when signed by all parties, shall constitute a binding agreement.

(b) Successors and Assigns. The provisions of the Amendment bind and inure to the benefit of the parties hereto, their successors and assigns.

(c) Choice of Law. The Amendment is governed by the laws of the State of Wyoming.

(d) Authority. Each person whose signature is affixed hereto represents and warrants that such person is authorized to execute this Amendment on behalf of and to bind the entity on whose behalf such person's signature is affixed.

IN WITNESS WHEREOF, this First Amendment to Memorandum of Lease Agreement has been duly executed and delivered as of the Effective Date.

LANDLORD: DELL RANGE RETAIL CENTER LLC,
a Delaware limited liability company

By: CNA Enterprises, Inc.,
a California corporation,
Its Manager

By: _____
Name: _____
Title: _____

A notary public or other officer completing this certificate verifies only the identity of the individual who signed the document to which this certificate is attached, and not the truthfulness, accuracy, or validity of that document.

STATE OF CALIFORNIA
COUNTY OF LOS ANGELES

On _____, 2022 before me, _____, a notary public, personally appeared _____, who proved to me on the basis of satisfactory evidence to be the person(s) whose name(s) is/are subscribed to the within instrument and acknowledged to me that he/she/they executed the same in his/her/their authorized capacity(ies), and that by his/her/their signature(s) on the instrument the person(s), or the entity upon behalf of which the person(s) acted, executed the instrument.

I certify under PENALTY OF PERJURY under the laws of the State of California that the foregoing paragraph is true and correct.

Witness my hand and official seal.

Signature _____ (Seal)

TENANT: DILLON COMPANIES, LLC,
a Kansas limited liability company

By: _____
Name: _____
Title: _____

Tenant Acknowledgement

State of Ohio)
) ss:
County of Hamilton)

On the _____ day of _____, 2022, the foregoing instrument was acknowledged before me by _____, the duly authorized _____ of Dillon Companies, LLC, a Kansas limited liability company, on behalf of the company.

Notary Public

EXHIBIT C

NNN Provisions Applicable to Additional Space Only

MAINTENANCE OF PARKING AND COMMON AREAS.

1. Common Area Expenses. The expenses incurred by Landlord in connection with the CTI Expenses shall be apportioned among the various occupants and tenants of the Center. Tenant acknowledges that a portion of the Center is leased to one Major Tenant (as hereinafter defined) and that the space occupied by a Major Tenant is hereinafter referred to as a "**Major Tenant Space**." The contributions of the Major Tenant towards the common area expenses shall be credited towards payment of the entirety of the common area expenses for the Center and Tenant hereby agrees to pay to Landlord a share of the remainder of such common area expenses, which share shall be computed by multiplying the remainder of such common area expenses by a fraction, the numerator of which shall be the gross leasable floor area of the Additional Space and the denominator of which shall be the gross leasable floor area of the entire Center, exclusive of the gross leasable floor area of the Major Tenant Space. Without limiting the generality of the foregoing, in the event an item or items of CTI Expense benefits less than all of the tenants in the Center and the Tenant is benefiting from such item or items, Tenant's proportionate share for any calendar year during the term of the Lease for that particular item or items shall be equal to the cost of such item or items multiplied by a percentage being equal to the square footage of the Additional Space divided by the total square footage leased by tenants benefiting from such item or items of CTI Expense. Landlord shall have a one-time right within thirty (30) days of Tenant opening for business in the Additional Space to measure such Additional Space in accordance with the standards set forth by the Building Owners & Managers Association (commonly referred to as "BOMA Standards") and shall provide a copy of the remeasurement findings to Tenant. Tenant's proportionate share of CTI Expenses shall adjust (up or down) based on the remeasurement, but the Store Base Rent for the Additional Space shall not adjust.

2. Expenses. The term "**CTI Expenses**" includes all sums expended by Landlord in connection with the Areas (including administrative and professional expenses) for all maintenance and repair, replacement, resurfacing, painting, restriping, cleaning, snow removal, sweeping and janitorial services, planting, landscaping, lighting and other utilities, signs, markers, bumpers, garbage or refuse removal, security or policing, fire protection or alarm systems, service contracts to regularly inspect, service and/or maintain the Areas or any components thereof, depreciation on all equipment purchased (but not directly expensed) for the purpose of operating and/or maintaining such Areas (or rent if such equipment is leased) and maintenance and repair of such equipment, the cost of personnel to implement and/or supervise such services, insurance deductibles (provided such deductibles do not exceed \$15,000.00), management fees (based upon a percentage of rental income, which term rental income shall mean and include, but not be limited to, all monetary payments from all other tenants, occupants and/or licensees at the Center for their use and/or occupancy of all or a portion of the Center, including any and all sums that would be classified as Store Base Rent or all other sums of money or charges required to be paid pursuant to the terms of the Lease), plus an administrative fee to cover Landlord's overhead and administrative costs which shall be computed as fifteen percent (15%) of the yearly CTI Expenses from the Center. Landlord may, and without affecting its right to receive reimbursement for CTI

Expenses, cause any or all of said services to be provided by an independent contractor or contractors, or by an entity or entities owned and/or controlled by Landlord. Without limiting the generality of the foregoing, if either the Real Property Taxes or the insurance premiums for Landlord's insurance of the Center are not separately assessed by Landlord, Landlord may include said taxes and/or insurance premiums as CTI Expenses, as set forth in Section 3, below, however, Landlord shall be prohibited from assessing its administrative fee or management fees to these line items.

The amount of any item or items of expense paid for exclusively by a tenant other than Tenant (hereinafter an "**Excluded Expense**") shall not be included within the charges for CTI Expenses assessed to Tenant, and with respect to any such items of Excluded Expense, Tenant's proportionate share shall be adjusted to exclude the square footage occupied by the tenant directly paying the Excluded Expense when assessing Tenant's CTI Expenses.

3. Proration of Expenses. From and after the Effective Date of the LMA, but subject to adjustment as provided herein, Tenant shall pay Landlord on the first day of each month of the Lease Term one-twelfth (1/12th) of Tenant's proportionate share of the CAM Estimate, Tax Estimate and Insurance Estimate and Tenant's proportionate share of any other costs, expenses, and charges to be allocated to Tenant under any other provisions of this Lease (collectively "**CTI Estimate**") which shall be applied to Tenant's account and maintained by Landlord for the items included therein, which monthly amount may be adjusted from time to time by Landlord on the basis of Landlord's experience as well as the anticipated cost of all of the foregoing items. Notwithstanding anything contained herein or any verbal representations made by Landlord or Landlord's agent to the contrary, Landlord expressly does not represent or warrant that the CTI Estimate set forth below, or in effect at any time during the Lease Term, is an accurate representation of the actual costs which may ensue for those items for which the estimated payments are being made. While the Landlord may endeavor to estimate such actual costs, for various reasons, including fluctuations in many expenses and taxes over which the Landlord may have little or no control, there may be a shortfall when the reconciliation of the estimates to such actual costs is made. Tenant expressly acknowledges that such a shortfall may occur, and hereby agrees to promptly pay its share of such shortfall in accordance with the terms of this Lease.

If, at the end of any calendar year, Tenant's share of the foregoing costs exceeds the total of the CTI Estimates paid by Tenant during such calendar year, Tenant shall pay to Landlord the deficiency upon demand. If said CTI Estimates exceed Tenant's share of the foregoing costs, Tenant shall be entitled to offset the excess against the CTI Estimates thereafter to become due to Landlord, except in the year that the Lease expires when the excess shall be refunded to Tenant within 90 days of the start of the calendar year immediately following Lease expiration. Within 120 days of the start of each calendar year, Landlord shall furnish a statement to Tenant annually listing categories of expenses and reflecting the actual expenses for all the foregoing items and the excess or deficiency of Tenant's payments.

6. Defined Terms. Capitalized terms not otherwise defined in this Exhibit C shall have the meanings ascribed to them in the Lease and the LMA to which this Exhibit C is attached. The following terms shall have the meanings indicated below:

"Areas" means the common areas and parking areas within the Center.

"CAM Estimate" means [REDACTED] for the calendar year ending December 31, 2021 as same may be adjusted during the term of the Lease.

"Center" has the meaning given to such term in Lease Modification Agreement No. 4 to which this exhibit is attached as same may be adjusted during the term of the Lease.

"Insurance Estimate" means [REDACTED] for the calendar year ending December 31, 2021 as same may be adjusted during the term of the Lease.

"Lease Term" means the term of the Lease (as defined in the LMA) as amended by the LMA.

"LMA" means Lease Modification Agreement No. 4 to which this exhibit is attached.

"Major Tenant" means Dillon Companies, LLC, a Kansas limited liability company d/b/a King Soopers as tenant of the Premises.

"Tax Estimate" means [REDACTED] for the calendar year ending December 31, 2021 as same may be adjusted during the term of the Lease.

"Real Property Taxes" means any form of assessment, license fee, commercial rent tax, levy, penalty, or tax (other than inheritance or estate taxes and income taxes), imposed by any authority having the direct or indirect power to tax, including any city, county, state or federal government, or any school, agricultural, lighting, drainage, facilities or other improvement or special district thereof, as against any legal or equitable interest of Landlord in the Premises, the Center or in the real property of which the Premises is a part, as against Landlord's right to rent or other income therefrom, or as against Landlord's business of leasing the Premises, or any tax imposed in substitution, partially or totally, of any tax previously included within the definition of Real Property Taxes, or any additional tax the nature of which was previously included within the definition of Real Property Taxes, or any fees and costs of Landlord incurred in determining, filing, contesting and/or appealing any such tax, including accountant's, attorney's and consultant's fees. All payments of Real Property Taxes shall be prorated for the initial year of the lease and for the year in which this Lease terminates, based on the number of days in the tax year in question during which the term of the Lease is in effect.

OFFICERS OF APPLICANT (SECTION 14)

SEE ATTACHED

True and Correct Name	Date of Birth	Residence Address No. & Street City, State & Zip DO NOT LIST PO BOXES	Residence Phone Number	No. of Years in Corp or LLC <i>date elected to office</i>	% of Corporate Stock or Membership Held	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
Steve Dreher	01/14/1969	1009 Bramble Bush Dr. Hutchinson, KS 67502	620-728-0548	02/02/2020	0	Yes ☐ No X ☐	Yes ☐ No X ☐
Christine S. Wheatley	02/27/1971	225 Lafayette Circle Cincinnati, OH 45220	513-475-0861	05/23/2014	0	Yes ☐ No X ☐	Yes ☐ No X ☐
Carin L. Fike	05/02/1968	7500 Brill Rd Cincinnati, OH 45243	513-271-0483	04/26/2017	0	Yes ☐ No X ☐	Yes ☐ No X ☐
Jacqueline L. Cossey	09/15/1984	2207 Faulkner Springs Dr. Murfreesboro, TN 37128	706-593-5470	06/25/2020	0	Yes ☐ No X ☐	Yes ☐ No X ☐
Joseph M. Kelley	12/20/1965	65 Tejon St. Denver, CO 80223	617-874-0068	11/06/2021	0	Yes ☐ No X ☐	Yes ☐ No X ☐
Rick J. Landrum	08/11/1964	5110 Muirwoods Ct. Cincinnati, OH 45242	513-923-3822	04/28/2016	0	Yes ☐ No X ☐	Yes ☐ No X ☐
William A. Lewton	02/11/1973	908 East 32 nd Ave. Hutchinson, KS 67502	620-899-2787	09/30/2013	0	Yes ☐ No X ☐	Yes ☐ No X ☐
Philip B. Nelson	09/23/1964	157 Stonewater Dr. Hermitage, TN 37076	540-977-6357	06/25/2020	0	Yes ☐ No X ☐	Yes ☐ No X ☐
Joseph W. Bradley	11/01/1961	1165 Abbott Rd. Batavia, OH 45103	513-943-4750	10/18/2012	0	Yes ☐ No X ☐	Yes ☐ No X ☐
Dorothy D. Roberts	06/21/1964	4640 Whispering Oak Trail Cincinnati, OH 45247	513-658-9597	07/11/2005	0	Yes ☐ No X ☐	Yes ☐ No X ☐

UCC SEARCH RESULTS

STATE OF WYOMING * SECRETARY OF STATE
EDWARD A. BUCHANAN
BUSINESS DIVISION

Herschler Bldg East, Ste.100 & 101 , Cheyenne, WY 82002-0020

Phone: 307-777-7311

Email: UCC@wyo.gov

HOLLAND & HART LLP
2515 WARREN AVE STE 450
CHEYENNE, WY 82001

Request Date: 02/07/2022 12:41 PM
Info Request Doc #: 2022-21044017
Contact Name:

UCC Lien Certified Search Report

Search Results Include Documents Processed Through 2/7/2022 12:40 PM

The below listing is a record of active financing statements, statements of amendment, notices of federal tax liens, severance tax liens, or producer lien notices which name the debtor listed below and which are on file in this Office as of the date and time noted above. Note: EFS filings are not included in an official UCC2 search.

Search Criteria:

Organization: DILLON COMPANIES

Active (unlapsed records only, includes terminations), List and ALL Copies

Enclosures: Original Documents

No UCC Documents were found matching the criteria provided.

WYOMING SECRETARY OF STATE GOOD STANDING

STATE OF WYOMING
Office of the Secretary of State

I, EDWARD A. BUCHANAN, SECRETARY OF STATE of the STATE OF WYOMING, do hereby certify that according to the records of this office,

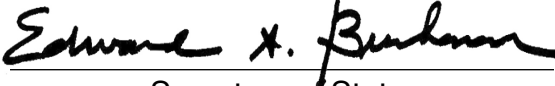
Dillon Companies, LLC
is a
Limited Liability Company

formed or qualified under the laws of Kansas did on **April 20, 1998**, comply with all applicable requirements of this office. This entity has been assigned entity identification number **1998-000333413**.

This entity is in existence and in good standing in this office and has filed all annual reports and paid all annual license taxes to date, or is not yet required to file such annual reports; and has not filed an Application for Certificate of Withdrawal.

I have affixed hereto the Great Seal of the State of Wyoming and duly generated, executed, authenticated, issued, delivered and communicated this official certificate at Cheyenne, Wyoming on this 7th day of February, 2022 at 12:22 PM. This certificate is assigned ID Number 049744438.




Secretary of State

Notice: A certificate issued electronically from the Wyoming Secretary of State's web site is immediately valid and effective. The validity of a certificate may be established by viewing the Certificate Confirmation screen of the Secretary of State's website <https://wyobiz.wyo.gov> and following the instructions displayed under Validate Certificate.

FLOOR PLAN OF PREMISES TO BE LICENSED

EXISTING KING SOOPERS GROCERY
STORE

GROCERY PICKUP
OPERATIONS AREA, NOT
USED FOR LIQUOR
SERVICES

RETAIL LIQUOR
SALES AND
STORAGE ARE
INDICATED IN
YELLOW HIGHLIGHT

ADJACENT RETAIL

**Proposed Alcohol Training Program
pursuant to City Code Chapter 5.12 requirements**

The Cheyenne City Code imposes the following criteria, which must be met in order for a licensee to meet required review criteria. The applicant proposes to complete all of the following requirements, which are set forth in City Code 5.12.090. The applicant provides “TIPS” (Training for Intervention ProcedureS) type training at its locations that sell alcoholic beverages, and so applicant is familiar with providing training and in meeting compliance requirements in relation to liquor sales.

Applicant shall:

- Provide initial orientation training on alcohol and malt beverage related sales and service for new employees and all volunteers who will be selling or furnishing alcohol or malt beverages, and on-site managers and persons who may provide on-site security services on behalf of the licensee or permittee upon the premises.
- Provide training prior to any duties being performed that relate to alcohol and malt beverage sales and service. Orientation training materials must be approved by the chief of police.
- Ensure that persons who physically sell, serve or deliver alcoholic liquor or malt beverages at retail on or off the premises of a licensee or permittee, and on-site managers and any persons providing on-site security services successfully complete an alcohol training program as approved by the Wyoming Liquor Division pursuant to state law and the division's rules and regulations. Program participants must successfully complete the program within ninety (90) days of employment or initial date of providing services.
- Maintain, upon the business premises, a current list of bona fide employees, volunteers, on-site managers and any persons providing on-site security services; date of hire/service; dates of orientation training and successful completion of the approved training program, including any required continuing training. The list shall be available for inspection by law enforcement personnel.
- Prohibit sales to and consumption by persons under the legal drinking age within the licensed or permitted building or authorized areas of service.
- Report to local law enforcement by the licensee, permittee, employee, volunteer, on-site manager, agents or any persons providing on-site security services, any incidents upon the premises requiring law enforcement response services. Immediate notification to the police department shall be provided when any criminal or illegal activity occurs or is observed in or upon the licensee's or permittee's property involving the licensed building and adjoining property affiliated with the sale or consumption of alcoholic liquor and malt beverages, including the reporting of any assault, aggravated assault, or assault and battery.